Political Theory

Textbook for Class XI



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Foreword

The National Curriculum Framework (NCF), 2005, recommends that children's life at school must be linked to their life outside the school. This principle marks a departure from the legacy of bookish learning which continues to shape our system and causes a gap between the school, home and community. The syllabi and textbooks developed on the basis of NCF signify an attempt to implement this basic idea. They also attempt to discourage rote learning and the maintenance of sharp boundaries between different subject areas. We hope these measures will take us significantly further in the direction of a child-centred system of education outlined in the National Policy on Education (1986).

The success of this effort depends on the steps that school principals and teachers will take to encourage children to reflect on their own learning and to pursue imaginative activities and questions. We must recognise that given space, time and freedom, children generate new knowledge by engaging with the information passed on to them by adults. Treating the prescribed textbook as the sole basis of examination is one of the key reasons why other resources and sites of learning are ignored. Inculcating creativity and initiative is possible if we perceive and treat children as participants in learning, not as receivers of a fixed body of knowledge.

These aims imply considerable change in school routines and mode of functioning. Flexibility in the daily time-table is as necessary as rigour in implementing the annual calendar so that the required number of teaching days is actually devoted to teaching. The methods used for teaching and evaluation will also determine how effective this textbook proves for making children's life at school a happy experience, rather than a source of stress or boredom. Syllabus designers have tried to address the problem of curricular burden by restructuring and reorienting knowledge at different stages with greater consideration for child

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psychology and the time available for teaching. The textbook attempts to enhance this endeavour by giving higher priority and space to opportunities for contemplation and wondering, discussion in small groups, and activities requiring hands-on experience.

The National Council of Educational Research and Training (NCERT) appreciates the hard work done by the textbook development committee responsible for this book. We wish to thank the Chairperson of the advisory group in Social Sciences, Professor Hari Vasudevan and the Chief Advisors for this book, Professor Suhas Palshikar and Professor Yogendra Yadav for guiding the work of this committee. Several teachers contributed to the development of this textbook; we are grateful to their principals for making this possible. We are indebted to the institutions and organisations which have generously permitted us to draw upon their resources, material and personnel. We are especially grateful to the members of the National Monitoring Committee, appointed by the Department of Secondary and Higher Education, Ministry of Human Resource Development under the Chairmanship of Professor Mrinal Miri and Professor G.P. Deshpande, for their valuable time and contribution. As an organisation committed to systemic reform and continuous improvement in the quality of its products, NCERT welcomes comments and suggestions which will enable us to undertake further revision and refinement.

Director
National Council of Educational
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New Delhi
20 December 2005

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Rationalisation of Content in the Textbooks

In view of the COVID-19 pandemic, it is imperative to reduce content load on students. The National Education Policy 2020, also emphasises reducing the content load and providing opportunities for experiential learning with creative mindset. In this background, the NCERT has undertaken the exercise to rationalise the textbooks across all classes. Learning Outcomes already developed by the NCERT across classes have been taken into consideration in this exercise.

Contents of the textbooks have been rationalised in view of the following:

- Overlapping with similar content included in other subject areas in the same class
- Similar content included in the lower or higher class in the same subject
- Difficulty level
- Content, which is easily accessible to students without much interventions from teachers and can be learned by children through self-learning or peer-learning
- Content, which is irrelevant in the present context

This present edition, is a reformatted version after carrying out the changes given above.

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Preface

The NCERT this year has introduced a separate paper on Political Theory for students of Class XI. This change has come as a part of the larger project to revise and redesign the school curricula. Previously students were exposed to political ideas and theories primarily through the study of political ideologies, such as, Liberalism, or Marxism, or Fascism. Concepts like freedom and equality entered the picture only indirectly in terms of their place in a given system of ideas. In the new course the central focus is on concepts rather than ideologies. The objective of the course is to introduce students to some of the important ideas and concepts which form a part of the living tradition of political thought in the world.

In the writing of this book the approach which was followed was to try and involve the students in the process of learning, both as recipients and creators of knowledge. The objective was to encourage students to *do* political theory by training them to scrutinise and reflect upon the ways we make sense of and conceptualise our world, as well as to develop and extend their understanding. Hence, even as each chapter begins with some minimum, and at times commonsensical, understanding of a concept, it tries to introduce students to different dimensions of the concept and give them a feel of the range of ideas that can be marshaled while taking positions and offering reasons.

For all of you, the students, who will study political theory and be examined in this subject, we hope will be this approach to the study of political theory more engaging. We wanted you not only to learn about the ideas which have been developed by thinkers over the ages but also to be able to respond to them on the basis of your own experience of the world. As you will see, the concepts included in this book – freedom, equality, rights, nationalism – are used in everyday life not only by politicians and governments but by all of us. We speak frequently of our freedoms and rights, of the fairness and unfairness of things, of our desire to be treated equally, of our sentiments about nationalism or peace, or other such ideals. The concepts that we are going to study in this book are thus already part of our lives. We apply them in our personal life, in the family, in the school, or among our friends, and we also use them when we take positions on public policies or political debates.

The starting point of our study is not therefore unfamiliar. But we hope that through the study of political theory you will be able to refine your

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ideas and express them with greater precision and clarity. If, at the end of the year, you are able to critically reflect on your beliefs and ideas and offer reasoned and compelling arguments in defence of your position, we think that this experiment would have been successful. The side comments, suggestions for activities, and exercises in each chapter were designed to indicate how these concepts could help you interpret the often-confusing world in which we live. As with all such new projects, mistakes might have been made but we look forward to feedback from you.

Even though students were the major focus of our thinking when planning the book we recognise the crucial role that teachers play in the learning process. We hope that the book will also empower teachers to use it not as a repository of truths but as a starting point for generating a creative classroom environment. The different exercises and activities included in each chapter were intended not as directions for what the teachers have to do in their classes. Rather they were meant to be indicators of how the ideas in a chapter and the book as a whole could be appropriated and developed.

We might also add that in addition to the main text, boxes have been introduced in each chapter to draw your attention to the political thought and contribution of a particular theorist or of a system of ideas. These too were conceived as ways of enriching and deepening the discussion, without compelling the student to commit to memory who said what, when and why. We do hope that the teachers will assess students in terms of their ability to think for themselves by understanding the different aspects and dimensions of a given concept rather than for their skill in rehearsing and reproducing all the possible arguments and usages of a concept discussed in the text. Such an open-ended approach may present a challenge both for teachers and students but it should become an integral part of our educational system.

In this short preface, rather than prescribing what needs to be done, and how, we have tried to share with you how we approached the writing of the book. From teachers also we would appreciate feedback about the book and its design.

Writing the book was a collective enterprise of a number of people and it involved a continuous dialogue regarding the meaning of concepts and how they could be taught. We recognised both the need to listen to each other as well as to convince others of our point of view. The end result is before you and we will wait to get your response.

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The design of this book has the stamp of Shweta Rao and if the book has an attractive look that compels you to leaf through it, it is on account of her efforts.

The contribution of M.V.S.V. Prasad, *Assistant Professor*, Department of Curriculum Studies, NCERT, in reviewing and updating the current edition is appreciated.

The Council acknowledges the contributions of the following review committee members towards the rationalisation of the textbook: Kavita Jain, *PGT*, Political Science, Delhi; Maneesha Pandey, Department of Political Science, Hindu College, Delhi University, New Delhi; Shankar Sharan, *Professor,* DESS, NCERT; Vanthangpui Khobung, *Assistant Professor*, RIE, Bhopal, NCERT; Sunita Kathuria, *PGT*, Political Science, New Delhi.

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THE CONSTITUTION OF INDIA

PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a [1]**[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC]** and to secure to all its citizens :

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all

FRATERNITY assuring the dignity of the individual and the [2][unity and integrity of the Nation];

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

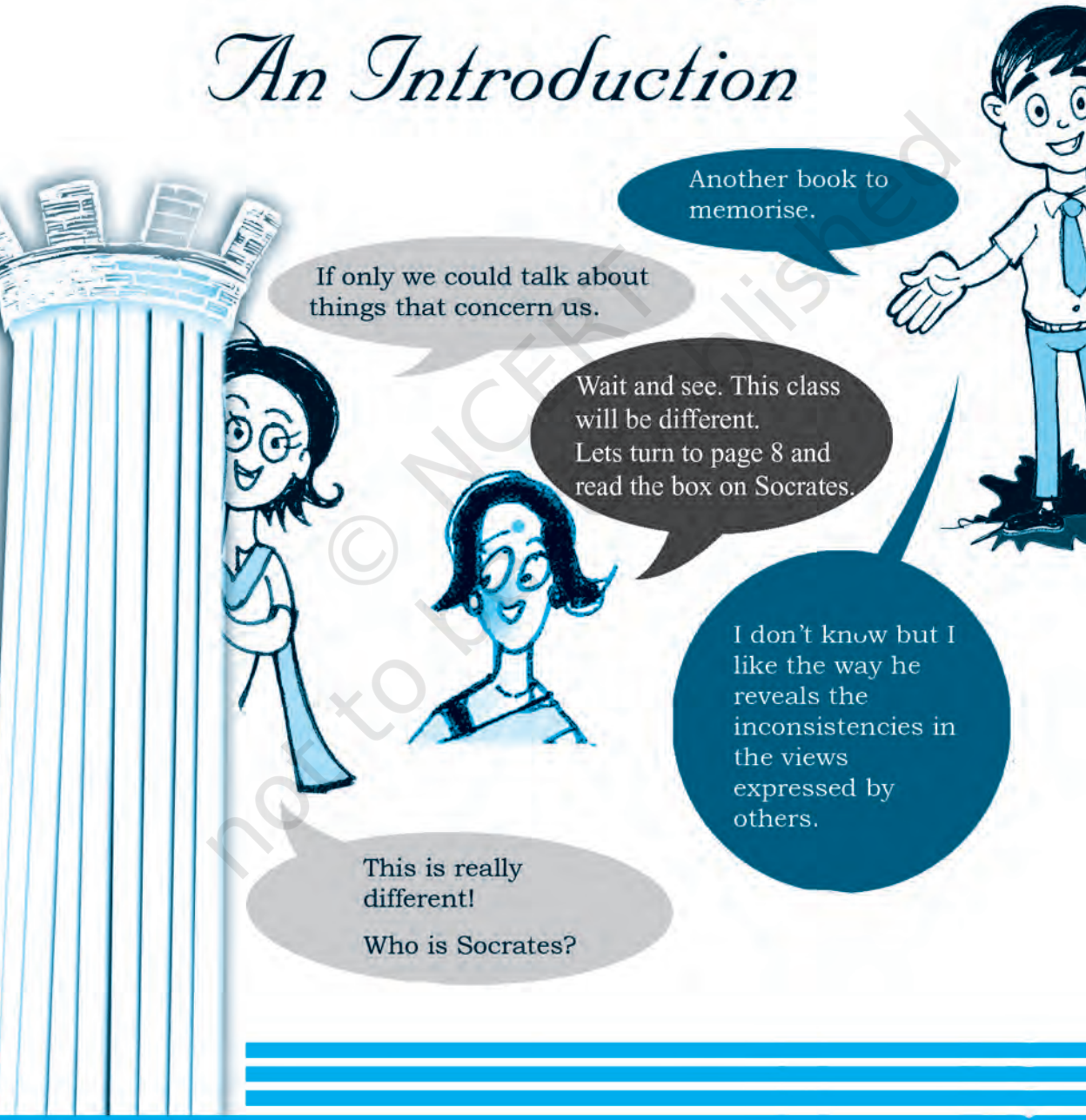
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1. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Sovereign Democratic Republic" (w.e.f. 3.1.1977)
2. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Unity of the Nation" (w.e.f. 3.1.1977)

Chapter 1

Political Theory: An Introduction

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Introduction

Human beings are unique in two respects: they possess reason and the ability to reflect on their actions. They also have the capacity to use language and communicate with each other. Unlike other species, they can express their innermost thoughts and desires; they can share their ideas and discuss what they consider to be good and desirable. Political theory has its roots in the twin aspects of the human self. It analyses certain basic questions such as how should society be organised? Why do we need government? What is the best form of government? Does law limit our freedom? What does the state owe its citizens? What do we owe each other as citizens?

Political theory examines questions of this kind and systematically thinks about the values that inform political life — values such as freedom, equality and justice. It explains the meaning and significance of these and other related concepts. It clarifies the existing definitions of these concepts by focusing on some major political thinkers of the past and present. It also examines the extent to which freedom or equality are actually present in the institutions that we participate in, everyday life such as schools, shops, buses or trains or government offices. At an advanced level, it looks at whether existing definitions are adequate and how existing institutions (government, bureaucracy) and policy practices must be modified to become more democratic. The objective of political theory is to train citizens to think rationally about political questions and assess the political events of our time.

In this chapter, we will examine what is meant by politics and political theory and why we should study it.

1.1 What is Politics?

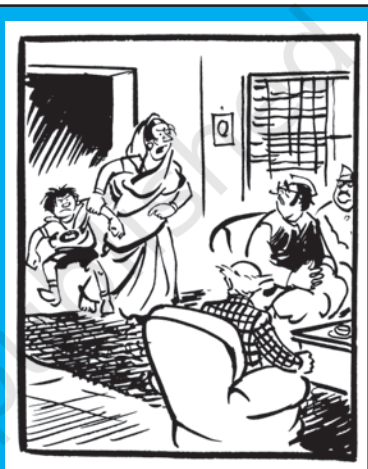
Let's Debate

What is Politics.

You would have noticed that people have different ideas about what politics is. Political leaders, and persons who contest elections and hold political office, may argue that it is a kind of public service. Some others associate politics with manipulation and intrigue undertaken to pursue ambitions and satisfy wants. A few think of politics as what politicians do. If they see politicians defecting from parties, making false promises and tall

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claims, manipulating different sections, pursuing personal or group interests ruthlessly and in worst cases stooping to crime, they link politics with 'scams'. So prevalent is this way of thinking that when we see people in different walks of life trying to promote their interests by any means possible, we say they are playing politics. If we see a cricketer manipulating to stay in the team, or a fellow student trying to use his father's position, or a colleague in office mindlessly agreeing with the boss, we say he or she is playing 'dirty' politics. Disillusioned by such pursuits of selfishness we despair of politics. We say, "I am not interested in politics" or "I am going to stay away from politics". It is not only ordinary people who despair of politics; even businessmen and entrepreneurs routinely blame politics for their woes even as they benefit from and fund various political parties. Cinema stars also complain of politics though they seem to be adept at the game once they join it.



R. K. Laxman in the Times of India

You must retire from politics at once! Your activities are having a bad influence on him. He thinks he can get away with lying and cheating.

We are thus confronted with conflicting images of politics. Is politics an undesirable activity that we should stay away from and get rid off? Or, is it a worthwhile activity which we must engage with in order to make a better world?

It is unfortunate that politics has come to be associated with the pursuit of self-interest by any and every method. We need to realise that politics is an important and integral part of any society. Mahatma Gandhi once observed that politics envelops us like the coils of a snake and there is no other way out but to wrestle with it. No society can exist without some form of political organisation and collective decision making. A society that wants to sustain itself needs to take into account the multiple needs and interests of its members. A number of social institutions such as the family, tribes and economic institutions, have emerged to help people fulfil their needs and aspirations. Such institutions help us find ways of living together acknowledging our obligations to each other. Among such institutions, governments play an important part. How governments

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Read the newspaper. What are the issues dominating the headlines? Do you think they have any relevance for you?

are formed and how they function is thus an important focus of politics.

But politics is not confined to the affairs of government. In fact what governments do is relevant because it affects the lives of the people in many different ways. We see that governments determine our economic policy and foreign policy and educational policy. These policies can help to improve the lives of people but an inefficient or corrupt government can also endanger people's lives and security. If the government in power allows any conflicts to become violent, markets close down and schools are shut. These disrupt our lives; we cannot buy things that we may need urgently; those who are sick cannot reach the hospital; even the school schedule gets affected, syllabi cannot be completed and we may have to take extra coaching for the exams and pay tuition fees. If, on the other hand, the government makes policies to increase literacy and employment, we may get an opportunity to go to a good school and get a decent job.

Since the actions of the government affect us deeply, we take a lively interest in what governments do. We form associations and organise campaigns to articulate our demands. We negotiate with others and try to shape the goals that governments pursue. When we disagree with the policies of the government, we protest and organise demonstrations to persuade the government to change the existing laws. We passionately debate the actions of our representatives and discuss whether corruption has increased or decreased. We ask whether corruption can be rooted out; whether reservations for specific groups are just or not. We try to understand why some parties and leaders win elections. In this way we look for the rationale underlying the prevalent chaos and decay, and aspire to create a better world.

Let's Do It

How does politics influence our daily life? Analyse a day's events in your life.

To sum up, politics arises from the fact that we have different visions of what is just and desirable for us and our

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society. It involves the multiple negotiations that go on in society through which collective decisions are made. At one level, it involves what governments do and how they relate to the aspirations of the people; at another level, it involves how people struggle and influence decision making. People may be said to engage in political activity whenever they negotiate with each other and take part in collective activities which are designed to promote social development and help to resolve common problems.

Let's Debate

Should students participate in politics?.

1.2 What Do We Study in Political Theory?

If we look around us what we see would be movement, development and change. But if we look deeper we would also see certain values and principles that have inspired people and guided policies. Ideals like democracy, freedom or equality for instance. Different countries may try to protect such values by enshrining them in their constitutions as is the case with the American and Indian constitutions.

These documents did not just emerge overnight; they are built upon the ideas and principles debated almost since the time of Kautilya, Aristotle to Jean Jacques Rousseau, Karl Marx, Mahatma Gandhi and Dr. B.R. Ambedkar. As far back as the fifth century B.C., Plato and Aristotle discussed with their students whether monarchy or democracy was better. In modern times, Rousseau first argued for freedom as a fundamental right of humankind. Karl Marx argued that equality was as crucial as freedom. Closer home, Mahatma Gandhi discussed the meaning of genuine freedom or *swaraj* in his book *Hind Swaraj*. Dr. Ambedkar vigorously argued that the scheduled castes must be considered a minority, and as such, must receive special protection. These ideas find their place in the Indian Constitution; our Preamble enshrines freedom and equality; the chapter on Rights in the Indian Constitution abolishes untouchability in any form; Gandhian principles find a place in Directive Principles.

Write a short note on any of the political thinkers mentioned in the chapter. [50 words]

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Introduction

Political theory deals with the ideas and principles that shape Constitutions, governments and social life in a systematic manner. It clarifies the meaning of concepts such as freedom, equality, justice, democracy, secularism and so on. It probes the significance of principles such as rule of law, separation of powers, judicial review, etc. This is done by examining the arguments advanced by different thinkers in defence of these concepts. Though Rousseau or Marx or Gandhi did not become politicians, their ideas influenced generations of politicians everywhere. There are also contemporary thinkers who draw upon them to defend freedom or democracy in our own time. Besides examining arguments, political theorists also reflect upon our current political experiences and point out trends and possibilities for the future.

Can you identify the political principle/value which is in application in each of the following statements/situations?

a. I should be able to decide which subjects I want to study in school.
b. The practice of untouchability has been abolished.
c. All Indians are equal before law.
d. Minorities can have their own schools and colleges.
e. Foreigners who are visiting India cannot vote in Indian elections.
f. There should be no censorship of media or films.
g. Students should be consulted while planning the annual day functions.
h. Everyone must join the Republic Day celebrations.

But is all this relevant for us now? Have we not already achieved freedom and democracy? While India is free and independent, questions regarding freedom and equality have not ceased to crop up. This is because issues concerning freedom, equality, democracy, arise in many areas of social life and they are being implemented in different sectors at different paces. For instance, although equality may exist in the political sphere in the form of equal rights, it may not exist to the same extent in the economic or social spheres. People may enjoy equal political rights but still be discriminated

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against socially because of their caste or poverty. Some people may have a privileged place in society while others are deprived even of basic necessities. Some are able to achieve whatever goals they set for themselves while many are unable even to go to schools so that they can have decent jobs in the future. For them, freedom is still a distant dream.

Secondly, though freedom is guaranteed in our Constitution, we encounter new interpretations all the time. This is a bit like playing a game; as we play chess or cricket, we learn how to interpret the rules. In the process, we discover new and broader meanings of the game itself. Similarly, the fundamental rights guaranteed by our Constitution are continually being reinterpreted in response to new circumstances. For instance, the right to life has been interpreted by the Courts to include the right to livelihood. The right to information has been granted through a new law. Societies frequently encounter new challenges which generate new interpretations. The fundamental rights guaranteed by our Constitution have been amended and expanded over time through judicial interpretations and government policies which are designed to address new problems.

Thirdly, as our world changes, we may discover new dimensions of freedom as well as new threats to freedom. For instance, global communications technology is making it easier for activists to network with one another across the world for protecting tribal cultures or forests. But it also enables terrorists and criminals to network. Moreover, internet commerce is all set to increase in the future. This means that the information we give about ourselves online to buy goods or services must be protected. So even though netizens (citizens of the internet) do not like government control, they recognise that some form of regulation is necessary to safeguard individual security and privacy. As a result, questions are raised regarding how much freedom should be given to people using the net. For instance, should they be allowed to send unsolicited e-mails to strangers? Can you advertise your products in

Let's Do It

Collect cartoons from various newspapers and magazines. What are the various issues that they are concerned with? Which political concept do they highlight?

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In ancient Greece, in the city of Athens, Socrates was described as the 'wisest man'. He was known for questioning and challenging popularly held beliefs about society, religion and politics. For this he was condemned to death by the rulers of Athens.

His student Plato wrote extensively about the life and ideas of Socrates. In his book 'The Republic', *he created the character Socrates and through him examined the question – what is justice?*

The book opens with a dialogue between Socrates and Cephalus. In the course of this dialogue Cephalus and his friends come to recognise that their understanding of justice is inadequate and unacceptable.

The important thing in this is that Socrates uses reason to reveal the limitations and inconsistencies in a given point of view. His adversaries eventually admit that the views they had held and lived by could not be sustained.

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chat rooms? Should governments be allowed to read private e-mails to track down terrorists? How much regulation is justified and who should regulate – governments or some private regulators? Political theory has a lot to teach us about possible answers to these questions and is therefore very relevant.

1.3 Putting Political Theory to Practice

In this textbook, we confine ourselves to one aspect of political theory — that which deals with the origins, meaning and significance of political ideas that we are familiar with such as freedom, equality, citizenship, justice, development, nationalism, secularism and so on. When we begin a debate or argument on any topic, we usually ask "what does it mean?" and "how does it matter?" Political theorists have asked what is freedom or equality and provided diverse definitions. Unlike in mathematics where there can be one definition of a triangle or square, we encounter many definitions of equality or freedom or justice.

Read and see how Socrates achieved this.

Well said, Cephalus, I replied; but as concerning justice, what is it? —to speak the truth and to pay your debts —no more than this?
And even to this are there not exceptions? Suppose that a friend when in his right mind has deposited arms with me and he asks for them when he is not in his right mind, ought I to give them back to him? …

You are quite right, he replied.

But then, I said, speaking the truth and paying your debts is not a correct definition of justice. …
And instead of saying simply as we did at first, that it is just to do good to our friends and harm to our enemies, we should further say: It is just to do good to our friends when they are good and harm to our enemies when they are evil?

Yes, that appears to me to be the truth.

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This is because terms like equality concern our relationships with other human beings rather than with things. Human beings, unlike things, have opinions on issues like equality. And many opinions need to be understood and harmonised. How do we go about doing this? Let us begin with our common experience of equality in different places.

You may have noticed that people often jump the queue in shops or doctor's waiting rooms or government offices. Sometimes, those who do so are told to get back in line and we feel glad. Sometimes, they get ahead and we feel cheated. We resent this because we all want equal opportunity to get goods and services for which we are paying. So when we reflect on our experience, we understand that equality means equal opportunity for all. At the same time, if there are separate counters for the old and disabled, we understand that such special treatment may be justified.

But we also notice everyday that many poor people cannot go to the shop or to a doctor because they have no money to pay

But ought the just to injure anyone at all?
Undoubtedly he ought to injure those who are both wicked and his enemies.

When horses are injured, are they improved or deteriorated?
The latter.

Deteriorated, that is to say, in the good qualities of horses, not of dogs?
Yes, of horses.

And dogs are deteriorated in the good qualities of dogs, and not of horses?
Of course.

And will not men who are injured be deteriorated in that which is the proper virtue of man?
Certainly.

And that human virtue is justice?
To be sure.

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for goods and services. Some of these people could be day labourers who are cutting stones or lugging bricks for long hours. If we are sensitive, we feel that it is not fair that in a society some members cannot even have their basic needs satisfied. We come to realise that equality must involve some kind of fairness so that people are not unduly exploited and disadvantaged by economic factors.

Consider the fact that there are many children who cannot go to school because they have to work to feed themselves. And most girl students in poor households are pulled out of school to care for their younger siblings while parents go to work. Even though the Indian constitution guarantees the right to primary education for all, this right remains formal. Again, we may feel that the government should do more for such children and their parents so that they are enabled to go to school.

Thus you may see that our idea of equality is quite complex; when we are in a queue or playground we want equal opportunity.

Then men who are injured are of necessity made unjust?
That is the result.

But can the musician by his art make men unmusical?
Certainly not.

Or the horseman by his art make them bad horsemen?
Impossible.

And can the just by justice make men unjust, or speaking general can the good by virtue make them bad?
Assuredly not….

Nor can the good harm anyone?
Impossible.

And the just is the good?
Certainly.

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If we suffer from some disability we want special provisions made. When we cannot even afford basic needs, equal opportunity is not enough. We must be enabled to go to school or get help through proactive measures such as fair distribution of resources (jobs, decent wages, subsidised hospitals, etc.). This requires that some agency be made responsible to ensure fairness.

So the reason we have many definitions is because the meaning of equality is dependent on the context. We started with what it meant for ourselves and then proceeded to consider others (the poor, disadvantaged, senior citizens, etc.). We discovered many layers of meaning. We have been doing political theory without realising it.

Political theorists clarify the meaning of political concepts by looking at how they are understood and used in ordinary language. They also debate and examine the diverse meanings and opinions in a systematic manner. When is equality of opportunity enough? When do people need special treatment? How far and how long should such special treatment be given? Should poor children be

Then to injure a friend or any one else is not the act of a just man, but of the opposite, who is the unjust?
I think that what you say is quite true, Socrates.

And he who is most skilful in preventing or escaping from a disease is best able to create one?
True.

And he is the best guard of a camp who is best able to steal a march upon the enemy?
Certainly.

Then he who is a good keeper of anything is also a good thief?
That, I suppose, is to be inferred.

Then if the just man is good at keeping money, he is good at stealing it.
That is implied in the argument.

given midday meals to encourage them to stay in schools? These are some questions which they address. As you can see, these issues are eminently practical; they provide guidelines for framing public policies on education and employment.

As in the case of equality, so also in the case of other concepts, political theorists engage with everyday opinions, debate possible meanings and thrash out policy options. Freedom, Citizenship, Rights, Development, Justice, Equality, Nationalism and Secularism are some of the concepts that we will discuss in the following chapters.

1.4 Why should We Study Political Theory?

We may have political ideas but do we need to study political theory? Is it not more suited for politicians who practise politics? Or for bureaucrats who make policies? Or for those who teach political theory? Or for lawyers and judges who interpret the Constitution and laws? Or for activists and journalists who expose exploitation

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Then after all the just man has turned out to be a thief. ...
You would argue that the good are our friends and the bad our enemies?
Yes.

And instead of saying simply as we did at first, that it is just to do good to our friends and harm to our enemies, we should further say: It is just to do good to our friends when they are good and harm to our enemies when they are evil?
Yes, that appears to me to be the truth.

But ought the just to injure any one at all?
Undoubtedly he ought to injure those who are both wicked and his enemies.

When horses are injured, are they improved or deteriorated?
The latter.

Deteriorated, that is to say, in the good qualities of horses, not of dogs?
Yes, of horses.

And dogs are deteriorated in the good qualities of dogs, and not of horses?
Of course.

and demand new rights? What do we (high school students) gain by knowing the meaning of freedom or equality?

First of all, political theory is relevant for all the above target groups. As high school students, we may choose one of the above professions in the future and so indirectly it is relevant for us even now. Do we not learn mathematics although not all of us will become mathematicians or engineers? Is it not because basic arithmetic is useful to life in general?

Secondly, we are all going to be citizens entitled to vote and decide other issues. To act responsibly, it is helpful to have a basic knowledge of the political ideas and institutions that shape the world we live in. In the information society, it is crucial that we learn to be reasonable and informed if we are to participate in gram sabhas or offer our views on websites and polls. If we simply express arbitrary preferences, we will not be very effective. But if we are thoughtful and mature we can use the new media to discuss and express our common interests.

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And will not men who are injured be deteriorated in that which is the proper virtue of man?
Certainly.

And that human virtue is justice?
To be sure.

Then men who are injured are of necessity made unjust?
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But can the musician by his art make men unmusical?
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And can the just by justice make men unjust, or speaking general can the good by virtue make them bad?
Assuredly not….

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As citizens, we are a bit like the audience in a music concert; we are not the main performers interpreting the song and melody. But we set the agenda and appreciate the output and put in new requests. Have you noticed that musicians perform better when they know the audience is knowledgeable and appreciative? So also an educated and vigilant citizenry makes those who play politics more public-spirited.

Thirdly, freedom, equality and secularism are not abstract issues in our lives. We daily encounter discrimination of various sorts in families, schools, colleges, shopping malls and so on. We ourselves have prejudices against people who are different from us, be they of a different caste or religion or gender or class. If we feel oppressed, we want it redressed and if that is delayed, we feel violent revolution is justified. If we are privileged, we deny that there is any oppression even as our maids and servants struggle for dignity. Sometimes, we even feel that our servants deserve the treatment they get. What political theory encourages us to do is examine our ideas and feelings

Nor can the good harm any one?
Impossible.

And the just is the good?
Certainly.

Then to injure a friend or any one else is not the act of a just man, but of the opposite, who is the unjust?
I think that what you say is quite true, Socrates.

Then if a man says that justice consists in the repayment of debts, and that good is the debt which a man owes to his friends, and evil the debt which he owes to his enemies,—to say this is not wise; for it is not true, if, as has been clearly shown, the injuring of another can be in no case just.

I agree with you, said Polemarchus.

about political things. Just by looking at them more carefully, we become moderate in our ideas and feelings.

Finally, as students we enjoy debates and elocution competitions. We have opinions about what is right or wrong, just or unjust but do not know whether they are reasonable or not. Only when we argue with others, we realise the need to defend them and seek out reasons and arguments. Political theory exposes us to systematic thinking on justice or equality so that we can polish our opinions and argue in an informed manner and for the sake of common interests. Such skills of debating rationally and communicating effectively are likely to be great assets in the global informational order.

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1. Which of the following statements are true/false about Political Theory?
   (a) It discusses ideas that form the basis of political institutions.
   (b) It explains the relationship between different religions.
   (c) It explains the meanings of concepts like equality and freedom.
   (d) It predicts the performance of political parties.

2. Politics is more than what politicians do. Do you agree with this statement? Give examples.

3. Vigilant citizens are a must for the successful working of a democracy. Comment.

4. In what ways is the study of political theory useful for us? Identify four ways in which political theory can be useful to us?

5. Do you think that a good/convincing argument can compel others to listen to you?

6. Do you think studying political theory is like studying mathematics? Give reasons for your answer.

Exercises
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Chapter 2

Freedom

Overview

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Human history provides many examples of people and communities which have been dominated, or enslaved, or exploited, by more powerful groups. But it also provides us with inspiring examples of heroic struggles against such domination. What is this freedom for which people have been willing to sacrifice and die? In its essence, the struggle for freedom represents the desire of people to be in control of their own lives and destinies and to have the opportunity to express themselves freely through their choices and activities. Not just individuals but societies also value their independence and wish to protect their culture and future.

However, given the diverse interests and ambitions of people any form of social living requires some rules and regulation. These rules may require some constraints to be imposed on the freedom of individuals but it is recognised that such constraints may also free us from insecurity and provide us with the conditions in which we can develop ourselves. In political theory much of the discussion regarding freedom has therefore focused on trying to evolve principles by which we can distinguish between socially necessary constraints and other restrictions. There has also been debate about possible limitations on freedom which may result from the social and economic structures of a society. In this chapter we will look at some of these debates.

After studying this chapter you should be able to:

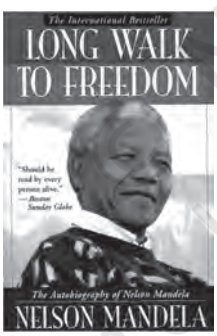
- Understand the importance of freedom for individuals and societies.
- Explain the difference between the negative and positive dimensions of freedom.
- Explain what is meant by the term 'harm principle'.

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Freedom

2.1 The Ideal of Freedom

Before we set out to answer these questions, let us stop for a moment and consider this. The autobiography of one of the greatest persons of the twentieth century, Nelson Mandela, is titled *Long Walk to Freedom.* In this book he talks about his personal struggle against the apartheid regime in South Africa, about the resistance of his people to the segregationist policies of the white regime, about the humiliations, hardships and police brutalities suffered by the black people of South Africa. These ranged from being bundled into townships and being denied easy movement about the country, to being denied a free choice of whom to marry. Collectively, such measures constituted a body of constraints imposed by the apartheid regime that discriminated between citizens based on their race. For Mandela and his colleagues it was the struggle against such unjust constraints, the struggle to remove the obstacles to the freedom of all the people of South Africa (not just the black or the coloured but also the white people), that was the *Long Walk to Freedom*.



For this freedom, Mandela spent twenty-seven years of his life in jail, often in solitary confinement. Imagine what it meant to give up one's youth for an ideal, to voluntarily give up the pleasure of talking with one's friends, of playing one's favourite game (Mandela loved boxing), of wearing one's favourite clothes, of listening to one's favourite music, of enjoying the many festivals that are part of one's life. Imagine giving all these up and choosing instead to be locked up alone in a room, not knowing when one would be released, only because one campaigned for the freedom of one's people. For freedom Mandela paid



Do only great men and women fight for great principles like freedom? What does this principle mean to me?

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Now, take another case. Gandhiji's thoughts on non-violence have been a source of inspiration for Aung San Suu Kyi as she remained under house arrest in Myanmar, separated from her children, unable to visit her husband when he was dying of cancer, because she feared that if she left Myanmar to visit him in England she would not be able to return. Aung San Suu Kyi saw her freedom as connected to the freedom of her people. Her book of essays bears the title *Freedom from Fear***.** She says, "for me real freedom is freedom from fear and unless you can live free from fear you cannot live a dignified human life". These are deep thoughts that lead us to pause and consider their implications. We must not, her words suggest, be afraid of the opinions of other people, or of the attitude of authority, or of the reactions of the members of our community to the things we want to do, of the ridicule of our peers, or of speaking our mind. Yet we find that we often exhibit such fear. For Aung San Suu Kyi living a 'dignified human life' requires us to be able to overcome such fear.

From these two books of Nelson Mandela and Aung San Suu Kyi, we can see the power of the ideal of freedom, an ideal that was at the centre of our national struggle and the struggles of the peoples of Asia and Africa against British, French and Portuguese colonialism.

Let's Do It

Can you think of someone in your village, town or district who has struggled for his/her own freedom or the freedom of others? Write a short note about that person and the particular aspect of freedom which he/she struggled to protect.

2.2 What is Freedom?

A simple answer to the question 'what is freedom' is absence of constraints. Freedom is said to exist when external constraints on the individual are absent. In terms of this definition an individual could be considered free if he/she is not subject to external controls or coercion and is able to make independent decisions and act in an autonomous way. However, absence of constraints is only one dimension of freedom. Freedom is also about expanding the ability

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Swaraj

A concept analogous to Freedom in Indian political thought is '*Swaraj*'. The term *Swaraj* incorporates within it two words — *Swa* (Self) and *Raj* (Rule). It can be understood to mean both the rule of the self and rule over self. *Swaraj*, in the context of the freedom struggle in India referred to freedom as a constitutional and political demand, and as a value at the social-collective level. That is why *Swaraj* was such an important rallying cry in the freedom movement inspiring Tilak's famous statement — "*Swaraj* is my birth right and I shall have it."

It is the understanding of *Swaraj* as Rule over the Self that was highlighted by Mahatma Gandhi in his work *Hind Swaraj* where he states, "It is *Swaraj* when we learn to rule ourselves". *Swaraj* is not just freedom but liberation in redeeming one's self-respect, self-responsibility, and capacities for self-realisation from institutions of dehumanisation. Understanding the real 'Self ', and its relation to communities and society, is critical to the project of attaining *Swaraj*.

Gandhiji believed the development that follows would liberate both individual and collective potentialities guided by the principle of justice. Needless to say, such an understanding is as relevant to the twenty first century as it was when Gandhiji wrote the *Hind Swaraj* in 1909.

of people to freely express themselves and develop their potential. Freedom in this sense is the condition in which people can develop their creativity and capabilities.

Both these aspects of freedom — the absence of external constraints as well as the existence of conditions in which people can develop their talents — are important. A free society would be one which enables all its members to develop their potential with the minimum of social constraints.

No individual living in society can hope to enjoy total absence of any kind of constraints or restrictions. It becomes necessary then to determine which social constraints are justified and which are not, which are acceptable and which should be removed. To understand which social constraints are necessary, discussions on freedom need to look at the core relationship between the individual and the society (or group, community, or state) within which she/he is placed. That is, we need to examine the relationship between individual and society. We would need to see which features of the society allow the individual the freedom to choose, decide or act, and which do not. We would need to determine which features are desirable and which are not, which should be removed and which should not. Further we need to see if the

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principles which we use to differentiate necessary from unnecessary constraints also apply to the relationships between individuals and groups and nations.

Thus far we have defined freedom as the absence of constraint. To be free means to reduce or minimise social constraints that limit our ability to make choices freely. However, this is only one aspect of freedom. To put it in another way, freedom also has a positive dimension. To be free a society must widen the area in which individuals, groups, communities or nations, will be able to charter their own destiny and be what they wish to be. Freedom, in this sense, allows the full development of the individual's creativity, sensibilities and capabilities: be it in sports, science, art, music or exploration. A free society is one that enables one to pursue one's interests with a minimum of constraints. Freedom is considered valuable because it allows us to make choices and to exercise our judgement. It permits the exercise of the individual's powers of reason and judgement.

LET'S DEBATE

Girls and boys should be free to decide whom they wish to marry. Parents should have no say in this matter."

The Sources of Constraints

Restrictions on the freedom of individuals may come from domination and external controls. Such restrictions may be imposed by force or they may be imposed by a government through laws which embody the power of the rulers over the people and which may have the backing of force. This was the form of constraint represented by colonial rulers over their subjects, or by the system of apartheid in South Africa. Some form of government may be inevitable but if the government is a democratic one, the members of a state could retain some control over their rulers. That is why democratic government is considered to be an important means of protecting the freedom of people.

But constraints on freedom can also result from social inequality of the kind implicit in the caste system, or which result from extreme economic inequality in a society. The quotation from Subhas Chandra Bose on freedom draws attention to the need for the country to work to remove such constraints.

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Netaji Subhas Chandra Bose on Freedom

"If we are to bring about a revolution of ideas we have first to hold up before us an ideal which will galvanise our whole life. That ideal is freedom. But freedom is a word which has varied connotations and, even in our country, the conception of freedom has undergone a process of evolution. By freedom I mean all round freedom, i.e., freedom for the individual as well as for society; freedom for the rich as well as for the poor; freedom for men as well as for women; freedom for all individuals and for all classes. This freedom implies not only emancipation from political bondage but also equal distribution of wealth, abolition of caste barriers and social iniquities and destruction of communalism and religious intolerance. This is an ideal which may appear Utopian to hard-headed men and women, but this ideal alone can appease the hunger in the soul."
(*Presidential Address to the Student's Conference held at Lahore on 19 October 1929*)

2.3 Why Do We Need Constraints?

We cannot live in a world where there are no constraints. We need some constraints or else society would descend into chaos. Differences may exist between people regarding their ideas and opinions, they may have conflicting ambitions, they may compete to control scarce resources. There are numerous reasons why disagreements may develop in a society which may express themselves through open conflict. We see people around us ready to fight for all kinds of reasons ranging from the serious to the trivial. Rage while driving on the roads, fighting over parking spaces, quarrels over housing or land, disagreements regarding whether a particular film should be screened, all these, and many other issues, can lead to conflict and violence, perhaps even loss of life. Therefore every society needs some mechanisms to control violence and settle disputes. So long as we are able to respect each other's views and do not attempt to impose our views on others we may be able to live freely and with minimum constraints. Ideally, in a free society we should be able to hold our views, develop our own rules of living, and pursue our choices.

But the creation of such a society too requires some constraints. At the very least, it requires that we be willing to respect differences of views, opinions and beliefs. However, sometimes, we think that a

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strong commitment to our beliefs requires that we must oppose all those who differ from or reject our views. We see their views or ways of living as unacceptable or even undesirable. Under such circumstances we need some legal and political restraints to ensure that differences may be discussed and debated without one group coercively imposing its views on the other. Worse still, we may be confronted with attempts to bully or harass us so that we conform to their wishes. If so, we may want stronger support from law to ensure that my freedom is protected.

The important question however is to identify which constraints on freedom are necessary and justifiable and which are not? What sort of authority, external to the individual, may justifiably say what can be done and what cannot? Further, are there any areas of our life and action that should be left free of all external constraints?

Liberalism

When we say that someone's parents are very 'liberal', we usually mean that they are very tolerant. As a political ideology, liberalism has been identified with tolerance as a value. Liberals have often defended the right of a person to hold and express his/her opinions and beliefs even when they disagree with them. But that is not all that there is to liberalism. And liberalism is not the only modern ideology that supports tolerance.

What is more distinctive about modern liberalism is its focus on the individual. For liberals entities like family, society, community have no value in themselves, but only if these are valued by individuals. They would say, for example, that the decision to marry someone should be taken by the individual rather than by the family, caste or the community. Liberals tend to give priority to individual liberty over values like equality. They also tend to be suspicious of political authority.

Historically, liberalism favoured free market and minimal role to the state. However, present day liberalism acknowledges a role for welfare state and accepts the need for measures to reduce both social and economic inequalities.

2.4 Harm Principle

To answer these questions satisfactorily we have to address the issue of the limits, competence, and consequences of the imposition. We also have to engage with another issue that John Stuart Mill stated so eloquently in his essay *On Liberty*. In the discussions in

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political theory it is called the 'harm principle'. Let us quote his statement and then try to explain it.



Why does he talk about 'mankind'? What about women?

> *...the sole end for which mankind are warranted, individually or collectively, in interfering with the liberty of action of any of their number, is self-protection. That the only purpose for which power can be rightfully exercised over any member of a civilised community, against his will, is to prevent harm to others.*

Mill introduces here an important distinction. He distinguishes between 'self-regarding' actions, i.e., those actions that have consequences only for the individual actor and nobody else, and 'other regarding' actions, i.e., those actions that also have consequences for others. He argues that with respect to actions or choices that affect only one's self, self-regarding actions, the state (or any other external authority) has no business to interfere. Or put in simple language it would be: 'That's my business, I'll do what I like', or 'How does it concern you, if it does not affect you?' In contrast, with respect to actions that have consequences for others, actions which may cause harm to them, there is some case for external interference. After all if your actions cause me harm then surely I must be saved from such harm by some external authority? In this case it is the state which can constrain a person from acting in a way that causes harm to someone else.

However, as freedom is at the core of human society, is so crucial for a dignified human life, it should only be constrained in special circumstances. The 'harm caused' must be 'serious'. For minor harm, Mill recommends only social disapproval and not the force of law. For example the playing of loud music in an apartment building should bring only social disapproval from the other residents of the building. They should not involve the police. They should indicate their disapproval, of the inconvenience that playing loud music has caused them, by perhaps refusing to greet the person who plays the music disregarding the harm it is causing others. The harm that playing loud music causes is that of preventing those in other apartments from talking, or sleeping, or listening to their own music.

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This is minor harm and should only provoke social disapproval. It is not a fit case for legal punishment. Constraining actions by the force of law should only happen when the other regarding actions cause serious harm to definite individuals. Otherwise society must bear the inconvenience in the spirit of protecting freedom.



Let's Think

The Issue of Dress Code

If choosing what to wear is an expression of one's freedom then how should we look at the following situations where there are restrictions on dress?

- In China during Mao's regime all the people had to wear 'Mao suits' based on the argument that it was an expression of equality.
- A *fatwa* was issued against Sania Mirza for her style of dress that was considered, by one cleric, to be against the dress code prescribed for women.
- The rules of a test match in cricket require every cricketer to wear white dress.
- Students are required to wear school uniforms.

Let us debate some questions.

- Is the restriction on what to wear justified in all cases or only in some? When does it constitute a constraint on freedom?
- Who has the authority to impose these constraints? Should religious leaders be given the authority to issue decrees on dress? Can the state decide what one should wear? Should the ICC set down rules of what to wear when playing cricket?
- Is the imposition excessive? Does it diminish the many ways, people have of expressing themselves?
- What are the consequences of accepting the impositions? Will the society become 'equal' if everyone dresses the same way as in Maoist China? Or are women being denied the participation in sports if they cannot wear clothes that would help them to compete effectively? Will the game be affected if cricketers wear coloured clothes?

People should be ready to tolerate different ways of life, different points of view, and the different interests, so long as they do not cause harm to others. But such tolerance need not be extended to views and actions which may put people in danger or foment hatred

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against them. Hate campaigns cause serious harm to the freedom of others and actions that cause 'serious harm' are actions on which constraints can be imposed. But we must make sure that the constraints imposed are not so severe that they destroy freedom itself. For example, we must not ask for life imprisonment for those who only conduct hate campaign. Maybe some restriction on their movement, or some curtailment of their right to hold public meetings can be considered especially if they continue to carry on this campaign in spite of warnings by the state to desist from conducting such campaigns.

In the constitutional discussions in India, the term used for such justifiable constraints is 'reasonable restrictions'. The restrictions may be there but they must be reasonable, i.e., capable of being defended by reason, not excessive, not out of proportion to the action being restricted, since then it would impinge on the general condition of freedom in society. We must not develop a habit of imposing restrictions since such a habit is detrimental to freedom.

2.5 Negative and Positive Liberty

Earlier in the chapter we had mentioned two dimensions of freedom school— freedom as the absence of external constraints, and freedom as the expansion of opportunities to express one's self. In political theory these have been called negative and positive liberty. 'Negative liberty' seeks to define and defend an area in which the individual would be inviolable, in which he or she could 'do, be or become' whatever he or she wished to 'do, be or become'. This is an area in which no external authority can interfere. It is a minimum area that is sacred and in which whatever the individual does, is not to be interfered with. The existence of the 'minimum area of non-interference' is the recognition that human nature and human dignity need an area where the person can act unobstructed by others. How big should this area be, or what should it contain, are matters of discussion, and will continue to be matters of debate since the bigger the area of non-interference the more the freedom.

All we need to recognise is that the negative liberty tradition argues for an inviolable area of non-interference in which the individual can express himself or herself. If the area is too small

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then human dignity gets compromised. We may here ask the obvious question: Is the choice of what clothes to wear in different situations – school, playing-field, office – a choice that belongs to the minimum area and therefore one that cannot be interfered with by external authority or is it a choice that can be interfered with by state, religious authority, ICC or CBSE. Negative liberty arguments are in response to the question: 'Over what area am I the master?' It is concerned with explaining the idea of 'freedom from'.

In contrast, the arguments of positive liberty are concerned with explaining the idea of 'freedom to'. They are in response to the answer 'who governs me?' to which the ideal answer is 'I govern myself'. Positive liberty discussions have a long tradition that can be traced to Rousseau, Hegel, Marx, Gandhi, Aurobindo, and also to those who draw their inspiration from these thinkers. It is concerned with looking at the conditions and nature of the relationship between the individual and society and of improving these conditions such that there are fewer constraints to the development of the individual personality. The individual is like a flower that blossoms when the soil is fertile, and the sun is gentle, and the water is adequate, and the care is regular.

The individual to develop his or her capability must get the benefit of enabling positive conditions in material, political and social domains. That is, the person must not be constrained by poverty or unemployment; they must have adequate material resources to pursue their wants and needs. They must also have the opportunity to participate in the decision making process so that the laws made reflect their choices, or at least take those preferences into account. Above all, to develop their mind and intellect, individuals must have access to education and other associated opportunities necessary to lead a reasonably good life.



Do we have the freedom to destroy our environment?

Positive liberty recognises that one can be free only in society (not outside it) and hence tries to make that society such that it enables the development of the individual whereas negative liberty is only concerned with the inviolable area of non-interference and not with the conditions in society, outside this area, as such. Of course negative liberty would like to expand this minimum area as

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Freedom

much as is possible keeping in mind, however, the stability of society. Generally they both go together and support each other, but it can happen that tyrants justify their rule by invoking arguments of positive liberty.

Freedom of Expression

One of the issues that is considered to belong to the minimum area of 'non-interference' is the freedom of expression. J.S.Mill set out good reasons why freedom of expression should not be restricted. This is a good case for discussion.

At various times there have been demands to ban books, plays, films, or academic articles in research journals. Let us think about this demand to ban books in the light of our discussion so far which sees freedom as 'the making of choices', where a distinction is made between 'negative and positive liberty', where we recognise the need for 'justifiable constraints' but these have to be supported by proper procedures and important moral arguments. Freedom of expression is a fundamental value and for that society must be willing to bear some inconvenience to protect it from people who want to restrict it. Remember Voltaire's statement — 'I disapprove of what you say but I will defend to death your right to say it'. How deeply are we committed to this freedom of expression?

Some years ago Deepa Mehta, film maker, wanted to make a film about widows in Varanasi. It sought to explore the plight of widows but there was a strong protest from a section of the polity who felt that it would show India in a very bad light, who felt it was being made to cater to foreign audiences, who felt it would bring a bad name to the ancient town. They refused to allow it to be made and as a result it could not be made in Varanasi. It was subsequently made elsewhere. Similarly the book *Ramayana Retold* by Aubrey Menon and *The Satanic Verses* by Salman Rushdie were banned after protest from some sections of society. The film *The Last Temptation of Christ* and the play *Me Nathuram Boltey* were also banned after protests.

Banning is an easy solution for the short term since it meets the immediate demand but is very harmful for the long-term prospects of freedom in a society because once one begins to ban then one develops a habit of banning. But does this mean that we should never ban? After all we do have censorship of films. Is it not similar

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to banning, where only a portion of a film is banned and not the whole film? The question that is often debated, therefore, is: When should one ban and when should one not? Should one never ban? Just for interest, in England anyone who is employed to work for the Royal household is constrained by contract (a constraint?) from writing about the inner affairs of the household. So if such a person were to leave the employment they would be unable to give an interview or write an article or author a book about the politics of the Royal household. Is this an unjustifiable constraint on the freedom of expression?

Constraints of different kind thus exist and we are subject to them in different situations. While reflecting on such situations we need to realise that when constraints are backed by organised social — religious or cultural — authority or by the might of the state, they restrict our freedom in ways that are difficult to fight against. However, if we willingly, or for the sake of pursuing our goals or ambitions, accept certain restrictions, our freedom is not similarly limited. In any case if we are not coerced into accepting the conditions, then we cannot claim that our freedom has been curtailed.

Freedom of Expression

John Stuart Mill, a political thinker and an activist in the nineteenth century Britain, offered a passionate defence of freedom of expression, including freedom of thought and discussion. In his book *On Liberty* he offered four reasons why there should be freedom of expression even for those who espouse ideas that appear 'false' or misleading today.

First, no idea is completely false. What appears to us as false has an element of truth. If we ban 'false' ideas, we would lose that element of truth that they contain.

This is related to the second point. Truth does not emerge by itself. It is only through a conflict of opposing views that truth emerges. Ideas that seem wrong today may have been very valuable in the emergence of what we consider right kind of ideas.

Thirdly, this conflict of ideas is valuable not just in the past but is of continuing value for all times. Truth always runs the risk of being reduced to an unthinking cliché. It is only when we expose it to opposing views that we can be sure that this idea is trustworthy.

Finally, we cannot be sure that what we consider true is actually true. Very often ideas that were considered false at one point by the entire society and, therefore, suppressed turned out to be true later on. A society that completely suppresses all ideas that are not acceptable today, runs the danger of losing the benefits of what might turn out to be very valuable knowledge.

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We began by saying that freedom is the absence of external constraints. We have now come to realise that freedom embodies our capacity and our ability to make choices. And when we make choices, we have also to accept responsibility for our actions and their consequences. It is for this reason that most advocates of liberty and freedom maintain that children must be placed in the care of parents. Our capacity to make the right choices, to assess in a reasoned manner available options, and shoulder the responsibility of our actions, have to be built through education and cultivation of judgement just as much as it needs to be nurtured by limiting the authority of the state and the society.



1. What is meant by freedom? Is there a relationship between freedom for the individual and freedom for the nation?

2. What is the difference between the negative and positive conception of liberty?

3. What is meant by social constraints? Are constraints of any kind necessary for enjoying freedom?

4. What is the role of the state in upholding freedom of its citizens?

5. What is meant by freedom of expression? What in your view would be a reasonable restriction on this freedom? Give examples.

Exercises

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Chapter 3

Equality

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Overview

This chapter is about the concept of equality, a value that is also enshrined in our Constitution. In reflecting on this concept it examines the following questions:

- What is equality? Why should we be concerned about this moral and political ideal?
- Does the pursuit of equality involve treating everyone the same way in every condition?
- How may we pursue equality and minimise inequality in different spheres of life?
- How do we distinguish between different dimensions of equality — political, economic and social?

In the course of understanding and answering these questions, you would encounter some important ideologies of our time — socialism, marxism, liberalism and feminism.

In this chapter you will see facts and figures about the conditions of inequality. These are only for you to appreciate the nature of inequality; the facts and figures need not be memorised.

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3.1 Why Does Equality Matter?

Equality is a powerful moral and political ideal that has inspired and guided human society for many centuries. It is implicit in all faiths and religions which proclaim all human beings to be the creation of God. As a political ideal the concept of equality invokes the idea that all human beings have an equal worth regardless of their colour, gender, race, or nationality. It maintains that human beings deserve equal consideration and respect because of their common humanity. It is this notion of a shared humanity that lies behind, for instance, the notions of universal human rights or 'crimes against humanity'.

In the modern period the equality of all human beings has been used as a rallying slogan in the struggles against states and social institutions which uphold inequalities of rank, wealth status or privilege, among people. In the eighteenth century, the French revolutionaries used the slogan 'Liberty, Equality and Fraternity' to revolt against the landed feudal aristocracy and the monarchy. The demand for equality was also raised during anti-colonial liberation struggles in Asia and Africa during the twentieth century. It continues to be raised by struggling groups such as

Let's Do It

Search for quotations from different religious scriptures that affirm the ideal of equality. Read these in the classroom.

Everyone I know believes in a religion. Every religion I know preaches equality. Then why is there inequality in the world?



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women or *dalits* who feel marginalised in our society. Today, equality is a widely accepted ideal which is embodied in the constitutions and laws of many countries.

Yet, it is inequality rather than equality which is most visible around us in the world as well as within our own society. In our country we can see slums existing side by side with luxury housing, schools with world class facilities and airconditioned classrooms along with schools which may lack even drinking water facilities or toilets, waste of food as well as starvation. There are glaring differences between what the law promises and what we see around us.

Read the accompanying fact sheet on global inequalities and the table on inequalities within our country.

Fact sheet on Global Inequalities

1. The richest 50 individuals in the world have a combined income greater than that of the poorest 40 crore people.
2. The poorest 40 per cent of the world's population receive only 5 per cent of global income, while the richest 10 per cent of the world's population controls 54 per cent of global income.
3. The first world of the advanced industrial countries, mainly North America and Western Europe, with 25 per cent of the world's population, owns 86 per cent of the world's industry, and consumes 80 per cent of the world's energy.
4. On a per capita basis, a resident of the advanced industrial countries consumes at least three times as much water, ten times as much energy, thirteen times as much iron and steel and fourteen times as much paper as someone living in a developing country like India or China.
5. The risk of dying from pregnancy related causes is 1 to 18 in Nigeria but 1 to 8700 in Canada.
6. The industrial countries of the first world account for nearly two-thirds of the global emissions of carbon dioxide from the combustion of fossil fuels. They also account for three-quarters of emissions of sulphur and nitrogen oxide that cause acid rain. Many industries known for their high rate of pollution are being shifted from the developed countries to the less developed countries.

Source: Human Development Report, 2005, UNDP.

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Economic Inequalities in India

Here are some findings from the Census of India held in 2011 about household amenities and assets. You don't need to memorise any of these figures. Just read these to understand the extent of urban-rural disparities in the country. Where would your own family fit?

Families that have...	Rural families	Urban families	Put ✗ or ✓ for your family
Electricity connection	55%	93%	
Tap water in the house	35%	71%	
Bathroom in the house	45%	87%	
Television	33%	77%	
Scooter/Moped/ Motorcycle	14%	35%	
Car/Jeep/ Van	2%	10%	



Why talk about global or national inequalities when all around us there are inequalities to which nobody seems to object? Just look at the way my parents favour my brother over me.

Thus we face a paradox : almost everyone accepts the ideal of equality, yet almost everywhere we encounter inequality. We live in a complex world of unequal wealth, opportunities, work situations, and power. Should we be concerned about these kinds of inequalities? Are they a permanent and inevitable feature of social life which reflects the differences of talent and ability of human beings as well as their different contributions towards social progress and prosperity? Or are these inequalities a consequence of our social position and rules? These are questions that have troubled people all over the world for many years.

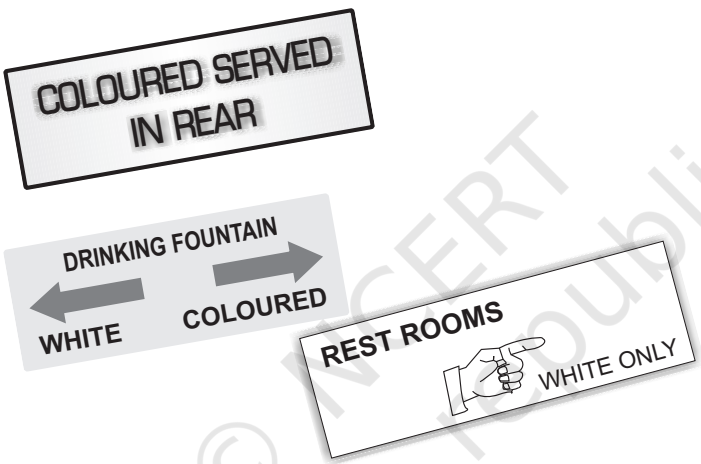
It is a question of this kind that makes equality one of the central themes of social and political theory. A student of political theory has to address a range of questions, such as, what does equality imply? Since we are different in many obvious ways, what does it mean to say that we are equal? What are we trying to achieve through the ideal of equality? Are we trying to eliminate all differences of income and status? In other words, what kind of equality are we pursuing, and for whom? Some other questions that have been raised regarding

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the concept of equality which we will consider here are : to promote equality should we always treat all persons in exactly the same way? How should a society decide which differences of treatment or reward are acceptable and which are not? Also, what kind of policies should we pursue to try and make the society more egalitarian?

3.2 What is Equality?

Take a look at these images.



All of them make distinctions between human beings on grounds of race and colour and these appear to most of us as unacceptable. In fact, such distinctions violate our intuitive understanding of equality which tells us that all human beings should be entitled to the same respect and consideration because of their common humanity.

However, treating people with equal respect need not mean always treating them in an identical way. No society treats all its members in exactly the same way under all conditions. The smooth functioning of society requires division of work and functions and people often enjoy different status and rewards on account of it. At times these differences of treatment may appear acceptable or even necessary. For instance, we usually do not feel that giving prime ministers, or army generals, a special official rank and status goes against the notion of equality, provided their privileges are not misused. But

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some other kinds of inequalities may seem unjust. For instance, if a child born in a slum is denied nutritious food or good education through no fault of his/her own, it may appear unfair to us.

The question that arises is which distinctions and differences are acceptable and which are not? When people are treated differently just because they are born in a particular religion or race or caste or gender, we regard it as an unacceptable form of inequality. But human beings may pursue different ambitions and goals and not all may be equally successful. So long as they are able to develop the best in themselves we would not feel that equality has been undermined. Some may become good musicians while others may not be equally outstanding, some become famous scientists while others more noted for their hard work and conscientiousness. The commitment to the ideal of equality does not imply the elimination of all forms of differences. It merely suggests that the treatment we receive and the opportunities we enjoy must not be pre-determined by birth or social circumstance.

Equality of Opportunities

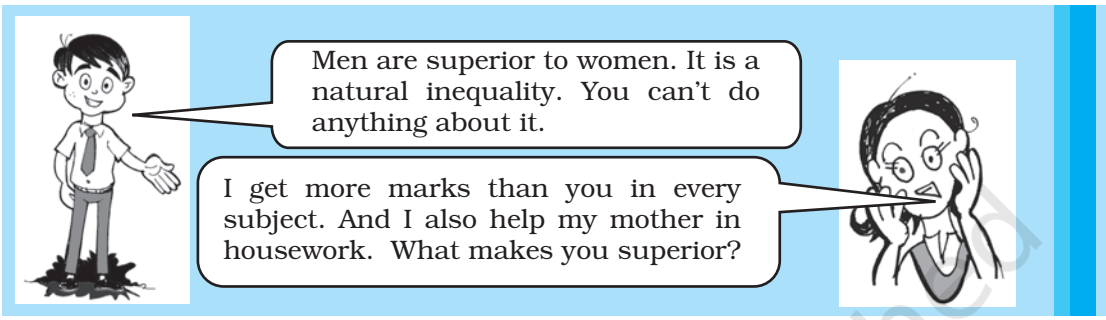
The concept of equality implies that all people, as human beings, are entitled to the same rights and opportunities to develop their skills and talents, and to pursue their goals and ambitions. This means that in a society people may differ with regard to their choices and preferences. They may also have different talents and skills which results in some being more successful in their chosen careers than others. But just because only some become ace cricketers or successful lawyers, it does not follow that the society should be considered unequal. In other words, it is not the lack of equality of status or wealth or privilege that is significant but the inequalities in people's access to such basic goods, as education, health care, safe housing, that make for an unequal and unjust society.

Natural and Social Inequalities

A distinction has sometimes been made in political theory between natural inequalities and socially-produced inequalities. Natural inequalities are those that emerge between people as a result of their different capabilities and talents. These kinds of inequalities

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are different from socially-produced inequalities which emerge as a consequence of inequalities of opportunity or the exploitation of some groups in a society by others.



Natural inequalities are considered to be the result of the different characteristics and abilities with which people are born. It is generally assumed that natural differences cannot be altered. Social inequalities on the other hand are those created by society. Certain societies may, for instance, value those who perform intellectual work over those who do manual work and reward them differently. They may treat differently people of different race, or colour, or gender, or caste. Differences of this kind reflect the values of a society and some of these may certainly appear to us to be unjust.

This distinction is sometimes useful in helping us to distinguish between acceptable and unfair inequalities in society but it is not always clear or self-evident. For instance, when certain inequalities in the treatment of people have existed over a long period of time they may appear to us as justifiable because they are based on natural inequalities, that is, characteristics that people are born with and cannot easily change. For example, women were for long described as 'the weaker sex', considered timid and of lesser intelligence than men, needing special protection. Therefore, it was felt that denying women equal rights could be justified. Black people in Africa were considered by their colonial masters to be of lesser intelligence, child-like, and better at manual work, sports and music. This belief was used to justify institutions like slavery. All these assessments are now questioned. They are now seen as

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distinctions made by society as a result of the differences of power between people and nations rather than based on their inborn characteristics.

Another problem which arises with the idea of natural differences is that some differences which could be considered natural need no longer be seen as unalterable. For instance, advances in medical science and technologies have helped many disabled people to function effectively in society. Today, computers can help blind people, wheel chairs and artificial limbs can help in cases of physical disability, even a person's looks can be changed with cosmetic surgery. The famous physicist Stephen Hawking can hardly move or speak but he has made major contributions to science. It would seem unjust to most people today if disabled people are denied necessary help to overcome the effects of their disability or a fair reward for their work on the grounds that they are naturally less capable.

Given all these complexities, it would be difficult to use the natural/socially-produced distinction as a standard by which the laws and policies of a society can be assessed. For this reason many theorists today differentiate between inequality arising from our choices and inequalities operating on account of the family or circumstance in which a person is born. It is the latter that is a source of concern to advocates of equality and which they wish to minimise and eliminate.

3.3 Three Dimensions of Equality

After considering what kind of social differences are unacceptable we need to ask what are the different dimensions of equality that we may pursue or seek to achieve in society. While identifying different kinds of inequalities that exist in society, various thinkers and ideologies have highlighted three main dimensions of equality namely, political, social and economic. It is only by addressing each of these three different dimensions of equality can we move towards a more just and equal society.

Political Equality

In democratic societies political equality would normally include granting equal citizenship to all the members of the state. As you

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will read in the chapter on Citizenship, equal citizenship brings with it certain basic rights such as the right to vote, freedom of expression, movement and association and freedom of belief. These are rights which are considered necessary to enable citizens to develop themselves and participate in the affairs of the state. But they are legal rights, guaranteed by the constitution and laws. We know that considerable inequality can exist even in countries which grant equal rights to all citizens. These inequalities are often the result of differences in the resources and opportunities which are available to citizens in the social and economic spheres. For this reason a demand is often made for equal opportunities, or for 'a level playing field'. But we should remember that although political and legal equality by itself may not be sufficient to build a just and egalitarian society, it is certainly an important component of it.

Social Equality

Political equality or equality before the law is an important first step in the pursuit of equality but it often needs to be supplemented by equality of opportunities. While the former is necessary to remove any legal hurdles which might exclude people from a voice in government and deny them access to available social goods, the pursuit of equality requires that people belonging to different groups and communities also have a fair and equal chance to compete for those goods and opportunities. For this, it is necessary to minimise the effects of social and economic inequalities and guarantee certain minimum conditions of life to all the members of the society — adequate health care, the opportunity for good education, adequate nourishment and a minimum wage, among other things. In the absence of such facilities it is exceedingly difficult for all the members of the society to compete on equal terms. Where equality of opportunity does not exist a huge pool of potential talent tends to be wasted in society.

In India, a special problem regarding equal opportunities comes not just from lack of facilities but from some of the customs which may prevail in different parts of country, or among different groups. Women, for instance, may not enjoy equal rights of inheritance in some groups, or there may be social prohibitions regarding their taking part in certain kinds of activities, or they may even be

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Inequalities in Education

Are the differences in the educational attainment of different communities depicted in the table below significant? Could these differences have taken place just by chance? Or do these differences point to the working of the caste system? Which factor other than the caste system do you see at work here?

Caste-community inequalities in higher education in urban India

Castes/ Communities	Graduates per thousand persons
Scheduled Caste	47
Muslim	61
Hindu–OBC	86
Scheduled Tribes	109
Christian	237
Sikh	250
Hindu–Upper Caste	253
Other Religions	315
ALL INDIA AVERAGE	***155***

Source:
National Sample Survey Organisation, 55th round survey, 1999-2000

discouraged from obtaining higher education. The state has a significant role in such matters. It should make policies to prevent discrimination or harassment of women in public places or employment, to provide incentives to open up education or certain professions to women, and other such measures. But social groups and individuals also have a role to play in raising awareness and supporting those who want to exercise their rights.

Economic Equality

At the simplest level, we would say that economic inequality exists in a society if there are significant differences in wealth, property or income between individuals or classes. One way of measuring the degree of economic inequality in a society would be to measure the relative difference between the richest and poorest groups. Another way could be to estimate the number of people who live below the poverty line. Of course, absolute equality of wealth or income has probably never existed in a society. Most democracies today try to make equal opportunities available to people in the belief that this would at least give those who have talent and determination the chance to improve their condition. With equal

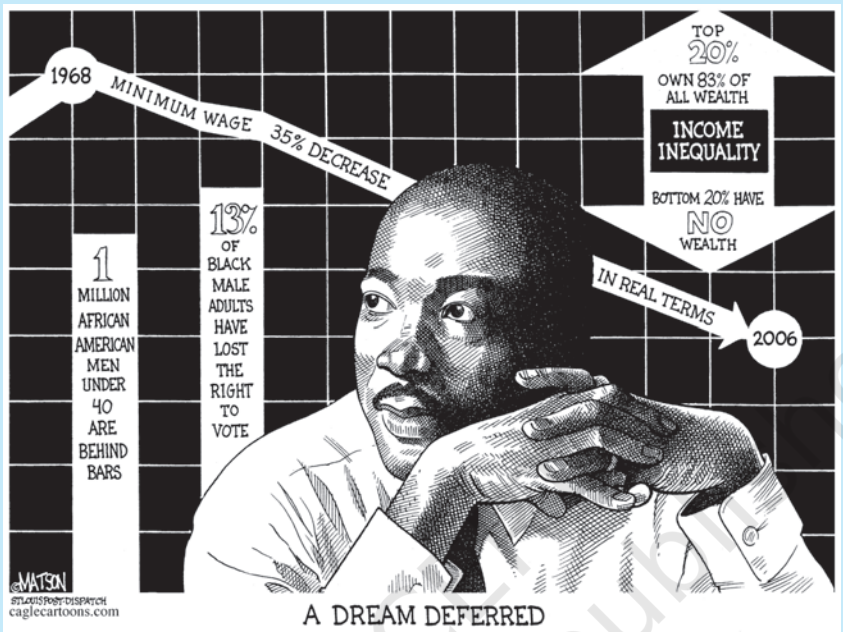
Let's Debate

Women should be allowed to join the combat units of the army and go up to the highest position.

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READ A CARTOON

Racial Inequality in the United States



© R.J. Matson, Cagle Cartoons Inc. (13.1.2006)

Find out more about racial inequality in the US. Which group or groups in our country suffer from similar inequality? What kind of policies have been adopted in the US to reduce this inequality? Is there something to be learnt from their experience? Can they learn something from our experience?

opportunities, inequalities may continue to exist between individuals but there is the possibility of improving one's position in society with sufficient effort.

Inequalities which are entrenched, that is, which remain relatively untouched over generations, are more dangerous for a society. If in a society certain classes of people have enjoyed considerable wealth, and the power which goes with it, over generations, the society would become divided between those classes and others who have remained poor over generations. Over time such class differences can give rise to resentment and violence. Because of the power of the wealthy classes it might prove difficult to reform such a society to make it more open and egalitarian.

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Feminism



Feminism is a political doctrine of equal rights for women and men. Feminists are those men and women who believe that many of the inequalities we see in society between men and women are neither natural nor necessary and can be altered so that both women and men can lead free and equal lives.

According to feminists, inequality between men and women in society is the result of patriarchy. This term refers to a social, economic and cultural system that values men more than women and gives men power over women. Patriarchy is based on the assumption that men and women are different by nature and that this difference justifies their unequal positions in society. Feminists questions this way of thinking by making a distinction between "sex" i.e. biological difference between men and women, and "gender" which determines the different roles that men and women play in society. For instance, the biological fact that only women can become pregnant and bear children does not require that only women should look after children after they are born. Feminists show us that much of the inequality between men and women is produced by society and not by nature.

Patriarchy produces a division of labour by which women are supposed to be responsible for "private" and "domestic" matters while men are responsible for work in the "public" domain. Feminists question this distinction by pointing out that in fact most women are also active in the "public" domain. That is, most women all over the world are employed in some form of work outside the home, but women continue to be solely responsible for housework as well. However, despite this "double burden" as feminists term it, women are given little or no say in decisions taken in the public domain. Feminists contend that this public/ private distinction and all forms of gender inequalities can and should be eliminated.



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Marxism and liberalism are two important political ideologies of our times. Marx was an important nineteenth century thinker who argued that the root cause of entrenched inequality was private ownership of important economic resources such as oil, or land, or forests, as well as other forms of property. He pointed out that such private ownership did not only make the class of owners wealthy, it also gave them political power. Such power enables them to influence state policies and laws and this could prove a threat to democratic government. Marxists and socialists feel that economic inequality provides support to other forms of social inequality such as differences of rank or privilege. Therefore, to tackle inequality in society we need to go beyond providing equal opportunities and try and ensure public control over essential resources and forms of property. Such views may be debatable but they have raised important issues which need to be addressed.

Let's Do It

Make a list of all the social and economic inequalities that you notice among the students of your own school.

An opposing point of view can be found in liberal theories. Liberals uphold the principle of competition as the most efficient and fair way of distributing resources and rewards in society. They believe that while states may have to intervene to try and ensure a minimum standard of living and equal opportunities for all, this cannot by itself bring equality and justice to society. Competition between people in free and fair conditions is the most just and efficient way of distributing rewards in a society. For them, as long as competition is open and free, inequalities are unlikely to become entrenched and people will get due reward for their talents and efforts.

For liberals the principle of competition is the most just and efficient way of selecting candidates for jobs or admission to educational institutions. For instance, in our country many students hope for admission to professional courses and entry is highly competitive. From time to time, the government and the courts have stepped in to regulate educational institutions and the entrance tests to ensure that everybody gets a fair and equal chance to compete. Some may still not get admission but it is considered to be a fair way of distributing limited seats.

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Socialism

Socialism refers to a set of political ideas that emerged as a response to the inequalities present in, and reproduced by, the industrial capitalist economy. The main concern of Socialism is how to minimise existing inequality and distribute resources justly. Although advocates of socialism are not entirely opposed to the market, they favour some kind of government regulation, planning and control over certain key areas such as education and health care.

In India the eminent socialist thinker Rammanohar Lohia, identified five kinds of inequalities that need to be fought against simultaneously: inequality between man and woman, inequality based on skin colour, caste-based inequality, colonial rule of some countries over others, and, of course, economic inequality. This might appear a self-evident idea today. But during Lohia's time it was common for the socialists to argue that class inequality was the only form of inequality worth struggling against. Other inequalities did not matter or would end automatically if economic inequality could be ended. Lohia argued that each of these inequalities had independent roots and had to be fought separately and simultaneously. He did not speak of revolution in the singular. For him struggle against these five inequalities constituted five revolutions. He added two more revolutions to this list : revolution for civil liberties against unjust encroachments on private life and revolution for non-violence, for renunciation of weapons in favour of *Satyagraha*. These were the seven revolutions or *Sapta Kranti* which for Lohia was the ideal of socialism.

Unlike socialists, liberals do not believe that political, economic and social inequalities are necessarily linked. They maintain that inequalities in each of these spheres should be tackled appropriately. Thus, democracy could help to provide political equality but it might be necessary to also devise different strategies to deal with social differences and economic inequalities. The problem for liberals is not inequality as such, but unjust and entrenched inequalities which prevent individuals from developing their capabilities.

3.4 How Can We Promote Equality?

We have already noted some of the basic differences among the socialists and the liberals on the most desirable way of achieving the goal of equality. While the relative merits and limitations of each of these points of view are being debated the world over, we still need to consider what principles and policies might be

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considered necessary for pursuing equality. Specifically, we need to consider if the use of affirmative action is justified for purposes of bringing about equality. This issue has raised a lot of controversy in recent years and we will discuss this issue in the following section.

Establishing Formal Equality

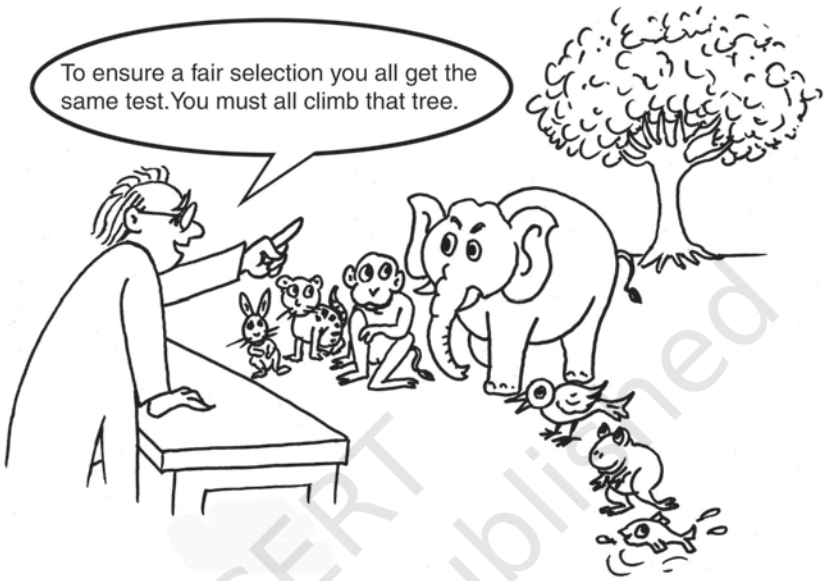
The first step towards bringing about equality is, of course, ending the formal system of inequality and privileges. Social, economic and political inequalities all over the world have been protected by customs and legal systems that prohibited some sections of society from enjoying certain kinds of opportunities and rewards. Poor people were not granted the right to vote in a large number of countries. Women were not allowed to take up many professions and activities. The caste system in India prevented people from the 'lower' castes from doing anything except manual labour. In many countries only people from some families could occupy high positions.

Attainment of equality requires that all such restrictions or privileges should be brought to an end. Since many of these systems have the sanction of law, equality requires that the government and the law of the land should stop protecting these systems of inequality. This is what our Constitution does. The Constitution prohibits discrimination on grounds of religion, race, caste, sex or place of birth. Our Constitution also abolishes the practice of untouchability. Most modern constitutions and democratic governments have formally accepted the principle of equality and incorporated it as identical treatment by law to all citizens without any regard to their caste, race, religion or gender.

Equality Through Differential Treatment

However, as we noted earlier, formal equality or equality before law is necessary but not sufficient to realise the principle of equality. Sometimes it is necessary to treat people differently in order to ensure that they can enjoy equal rights. Certain differences between people may have to be taken into account for this purpose. For instance, disabled people may justifiably demand special ramps in public spaces so that they get an equal chance to enter public

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buildings. Or women working in call centres at night may need special protection during the journey to and from the centre so that their equal right to work may be protected. These should not be seen as infringements of equality but as enhancement of equality.

What kinds of differences hinder access to equal opportunities and what kinds of policies may be pursued to overcome those hindrances are questions that are being discussed in almost all societies today. Some countries have used policies of affirmative action to enhance equality of opportunity. In our country we have relied on the policy of reservations. In the next section, we will attempt to understand the idea of affirmative action and understand some of the issues raised by specific policies within that framework.

Let's Do It

Make a list of all the facilities that students with various kinds of physical handicaps would need to learn as any other student. Which of these facilities are available in your school?

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Affirmative Action

Affirmative action is based on the idea that it is not sufficient to establish formal equality by law. When we wish to eliminate inequalities that are deeply rooted, it is necessary to take some more positive measures to minimise and eliminate entrenched forms of social inequalities. Most policies of affirmative action are thus designed to correct the cumulative effect of past inequalities.

Affirmative action can however take many forms, from preferential spending on facilities for disadvantaged communities, such as, scholarships and hostels to special consideration for admissions to educational institutions and jobs. In our country we have adopted a policy of quotas or reserved seats in education and jobs to provide equality of opportunity to deprived groups, and this has been the subject of considerable debate and disagreement. The policy has been defended on the ground that certain groups have been victims of social prejudice and discrimination in the form of exclusion and segregation. These communities who have suffered in the past and been denied equal opportunities cannot be immediately expected to compete with others on equal terms. Therefore, in the interest of creating an egalitarian and just society they need to be given special protection and help.

Special assistance in the form of affirmative action is expected to be a temporary or time-bound measure. The assumption is that special consideration will enable these communities to overcome the existing disadvantages and then compete with others on equal terms. Although policies of affirmative action are supported for making the society more equal, many theorists argue against them. They question whether treating people differently can ever lead to greater equality.

Critics of positive discrimination, particularly policies of reservations, thus invoke the principle of equality to argue against such policies. They contend that any provision of reservations or quotas for the deprived in admissions for higher education or jobs is unfair as it arbitrarily denies other sections of society their right to equal treatment. They maintain that reservations are a form of reverse discrimination and they continue with the practices that the principle of equality questions and rejects. Equality requires that all persons

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Equality

be treated alike, and when we make distinctions between individuals on the basis of their caste or colour, we are likely to reinforce caste and racial prejudices. For these theorists, the important thing is to do away with social distinctions that divide our society.

LET'S DEBATE

Policies of affirmative action for the Scheduled Castes and Scheduled Tribes should be extended to admission to private educational institutions.

In the context of this debate, it is relevant to draw a distinction between equality as a guiding principle of state policy and equal rights of individuals. Individuals have a right to equal consideration for admission to educational institutions and public sector employment. But competition should be fair. Sometimes when competing for limited seats or jobs people from deprived strata may be at a disadvantage. The needs and circumstances of a first generation learner whose parents and ancestors were illiterate are very different from those who are born into educated families. Members of excluded groups, whether they are dalits, women, or any other category, deserve and need some special help. To provide this, the state must devise social policies which would help to make such people equal and give them a fair chance to compete with others.

The fact is that in the spheres of education and health care India has done far less for its deprived population than what is their due. Inequalities in school education are glaring. Many poor children in rural areas or urban slums have little chance of attending schools. If they do get the chance, their schools have little to offer that would be comparable to the facilities available in elite schools. The inequalities with which children enter school tend to continue to hamper their chances to improve their qualifications or get good jobs. These students face hurdles in gaining admission to elite professional courses because they lack the means to pay for special coaching. The fees for professional courses also may be prohibitively high. Consequently, they cannot compete on equal terms with the more privileged sections.

Social and economic inequalities of this kind hinder the pursuit of equal opportunities. Most theorists today recognise this. What they contest is not the goal of equal opportunity but the policies

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that the state should pursue to achieve that goal. Should the state reserve seats for the deprived communities or should they provide special facilities that can help to develop talents and skills from an early age? How should we define who is deprived? Should we use an economic criterion to identify the deprived, or should we use social inequalities arising from the caste system in our country as the basis of identifying the deprived groups? These are aspects of social policy that are today being debated. Ultimately the policies that we choose would have to be justified in terms of their success in making the society more egalitarian and fair to all.

While reflecting on the issue of equality, a distinction must also be made between treating everyone in an identical manner and treating everyone as equal. The latter may on occasions need differential treatment but in all such cases the primary consideration is to promote equality. Differential or special treatment may be considered to realise the goal of equality but it requires justification and careful reflection. Since differential treatment for different communities was part and parcel of the caste system and practices like apartheid, liberals are usually very wary of deviations from the norm of identical treatment.



Let's Think

Consider the following situations. Is special and differential treatment justified in any of the following?

- ☐ Working women should receive maternity leave.
- ☐ A school should spend money to buy special equipment for two visually challenged students.
- ☐ Geeta plays brilliant basketball, so the school should build a basketball court for her so that she can develop her skills further.
- ☐ Jeet's parents want him to wear a turban in school, and Irfan's parents want him to pray on Friday afternoon, so the school should not insist that Jeet should wear a helmet while playing cricket, and Irfan's teacher should not ask him to stay back for extra classes on Friday.

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Many of these issues relating to the pursuit of equality have been raised by the women's movement. In the nineteenth century women struggled for equal rights. They demanded, for instance, the right to vote, the right to receive degrees in colleges and universities and the right to work — that is, the same rights as the men in their society. However, as they entered the job market they realised that women required special facilities in order to exercise these rights. For instance, they required some provision for maternity leave and crèches in the workplace. Without special considerations of this kind, they could not seriously compete for jobs or enjoy a successful professional and personal life. They needed, in other words, sometimes to be treated differently if they are to enjoy the same rights as men.

As we deliberate on issues of equality and examine whether different treatment is warranted in a particular case, we need continuously to ask ourselves whether differential treatment is essential to ensure that a set of people can enjoy the same rights as the rest of society. Caution must, however, be exercised to see that differential treatment does not yield new structures of dominance and oppression, or become a means for some dominant groups to reassert special privileges and power in society. Differential treatment is intended and justified only as a means to promoting a just and egalitarian society.

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Exercises

1. Some people argue that inequality is natural while others maintain that it is equality which is natural and the inequalities which we notice around us are created by society. Which view do you support? Give reasons.

2. There is a view that absolute economic equality is neither possible nor desirable. It is argued that the most a society can do is to try and reduce the gaps between the richest and poorest members of society. Do you agree?

3. Match the following concepts with appropriate instances:

(a) Affirmative action	(i) Every adult citizen has a right to vote
(b) Equality of opportunity	(ii) Banks offer higher rate of interest to senior citizen
(c) Equal Rights.	(iii) Every child should get free education

4. A government report on farmers' problems says that small and marginal farmers cannot get good prices from the market. It recommends that the government should intervene to ensure a better price but only for small and marginal farmers. Is this recommendation consistent with the principle of equality?

5. Which of the following violate the principles of equality? And why?
   (a) Every child in class will read the text of the play by turn.
   (b) The Government of Canada encouraged white Europeans to migrate to Canada from the end of the Second World War till 1960.
   (c) There is a separate railway reservation counter for the senior citizens.

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(d) Access to some forest areas is reserved for certain tribal communities.

6. Here are some arguments in favour of the right to vote for women. Which of these are consistent with the idea of equality? Give reasons.
   (a) Women are our mothers. We shall not disrespect our mothers by denying them the right to vote.
   (b) Decisions of the government affect women as well as men, therefore they also should have a say in choosing the rulers.
   (c) Not granting women the right to vote will cause disharmony in the family.
   (d) Women constitute half of humanity. You cannot subjugate them for long by denying them the right to vote.

Exercises
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Chapter 4

Social Justice



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Overview

Just as we intuitively understand what love means even if we cannot explain all its different shades of meaning, we also have an intuitive understanding of justice even though we may not be able to define it precisely. In that sense justice is a lot like love. In addition, both love and justice evoke passionate responses from their advocates. And as with love, no one hates justice, everyone wants justice for oneself and to some extent for others also. But unlike love, which is an aspect of our relationships with a few people whom we know well, justice concerns our life in society, the way in which public life is ordered and the principles according to which social goods and social duties are distributed among different members of society. As such, questions of justice are of central importance for politics.

After going through this chapter you should be able to:

- Identify some of the principles of justice which have been put forward in different societies and at different periods of time.
- Explain what is meant by distributive justice.
- Discuss John Rawls' argument that a fair and just society would be in the interest of all members and could be defended on rational grounds.

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Justice

4.1 What is Justice?

All cultures and traditions have grappled with questions of justice although they may have interpreted the concept in different ways. For instance, in ancient Indian society, justice was associated with *dharma* and maintaining *dharma* or a just social order, was considered to be a primary duty of kings. In China, Confucius, the famous philosopher argued that kings should maintain justice by punishing wrong doers and rewarding the virtuous. In fourth century B.C. Athens (Greece), Plato discussed issues of justice in his book *The Republic.* Through a long dialogue between Socrates and his young friends, Glaucon and Adeimantus, Plato examined why we should be concerned about justice. The young people ask Socrates why we should be just. They observe that people who were unjust seemed to be much better off than those who were just. Those who twisted rules to serve their interests, avoided paying taxes and were willing to lie and be deceitful, were often more successful than those who were truthful and just. If one were smart enough to avoid being caught then it would seem that being unjust is better than being just. You may have heard people expressing similar sentiments even today.

> "They say that to do injustice is, by nature, good; to suffer injustice, evil; but that the evil is greater than the good. And so when men have both done and suffered injustice and have had experience of both, not being able to avoid the one and obtain the other, they think that they had better agree among themselves to have neither; hence there arise laws and mutual covenants; and that which is ordained by law is termed by them lawful and just."
> (Glaucon to Socrates in *The Republic).*

Socrates reminds these young people that if everyone were to be unjust, if everyone manipulated rules to suit their own interests, no one could be sure of benefiting from injustice. Nobody would be secure and this was likely to harm all of them. Hence, it is in our own long-term interest to obey the laws and be just. Socrates clarified that we need to understand clearly what justice means in order to figure out why it is important to be just. He explained that justice does not only mean doing good to our friends and harm to our enemies, or pursuing our own interests. Justice involves the well-being of all people. Just as a doctor is

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concerned with the well-being of his/her patients, similarly the just ruler or the just government must be concerned with the well-being of the people. Ensuring the well-being of the people includes giving each person his due.

The idea that justice involves giving each person his due continues to be an important part of our present day understanding of justice. However, our understanding of what is due to a person has changed from the time of Plato. Today, our understanding of what is just is closely linked to our understanding of what is due to each person as a human being. According to the German philosopher Immanuel Kant, human beings possess dignity. If all persons are granted dignity then what is due to each of them is that they have the opportunity to develop their talents and pursue their chosen goals. Justice requires that we give due and equal consideration to all individuals.

Equal Treatment for Equals

Although there might be broad agreement in modern society about the equal importance of all people, it is not a simple matter to decide how to give each person his/her due. A number of different principles have been put forward in this regard. One of the principles is the principle of treating equals equally. It is considered that all individuals share certain characteristics as human beings. Therefore they deserve equal rights and equal treatment. Some of the important rights which are granted in most liberal democracies today include civil rights such as the rights of life, liberty and property, political rights like the right to vote, which enable people to participate in political processes, and certain social rights which would include the right to enjoy equal opportunities with other members of the society.

Apart from equal rights, the principle of treating equals equally would require that people should not be discriminated against on grounds of class, caste, race or gender. They should be judged on the basis of their work and actions and not on the basis of the group to which they belong. Therefore, if two persons from different castes perform the same kind of work, whether it be breaking stones or delivering Pizzas, they should receive the same kind of reward. If a person gets one hundred rupees for some work and another receives only seventy five rupees for the same work because they belong to

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different castes, then it would be unfair or unjust. Similarly, if a male teacher in a school gets a higher salary than a female teacher, then this difference would also be unjustifiable and wrong.

Proportionate Justice

However, equal treatment is not the only principle of justice. There could be circumstances in which we might feel that treating everybody equally would be unjust. How, for instance, would you react if it was decided in your school that all those who did an exam should get equal marks because they are all students of the same school and did the same exam? Here you might think it would be more fair if students were awarded marks according to the quality of their answer papers and also, possibly, the degree of effort they had put in. In other words, provided everybody starts from the same base line of equal rights, justice in such cases would mean rewarding people in proportion to the scale and quality of their effort. Most people would agree that although people should get the same reward for the same work, it would be fair and just to reward different kinds of work differently if we take into account factors such as the effort required, the skills required, the possible dangers involved in that work, and so on. If we use these criteria we may find that certain kinds of workers in our society are not paid a wage which takes such factors sufficiently into account. For instance, miners, skilled craftsmen, or people in sometimes dangerous but socially useful professions like policemen, may not always get a reward which is just if we compare it to what some others in society may be earning. For justice in society, the principle of equal treatment needs to be balanced with the principle of proportionality.

Recognition of Special Needs

A third principle of justice which we recognise is for a society to take into account special needs of people while distributing rewards or duties. This would be considered a way of promoting social justice. In terms of their basic status and rights as members of the society justice may require that people be treated equally. But even non-discrimination between people and rewarding them proportionately to their efforts might not be enough to ensure that people enjoy equality in other aspects of their lives in society nor that the society

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as a whole is just. The principle of taking account of the special needs of people does not necessarily contradict the principle of equal treatment so much as extend it because the principle of treating equals equally could imply that people who are not equal in certain important respects could be treated differently.



Let's Think

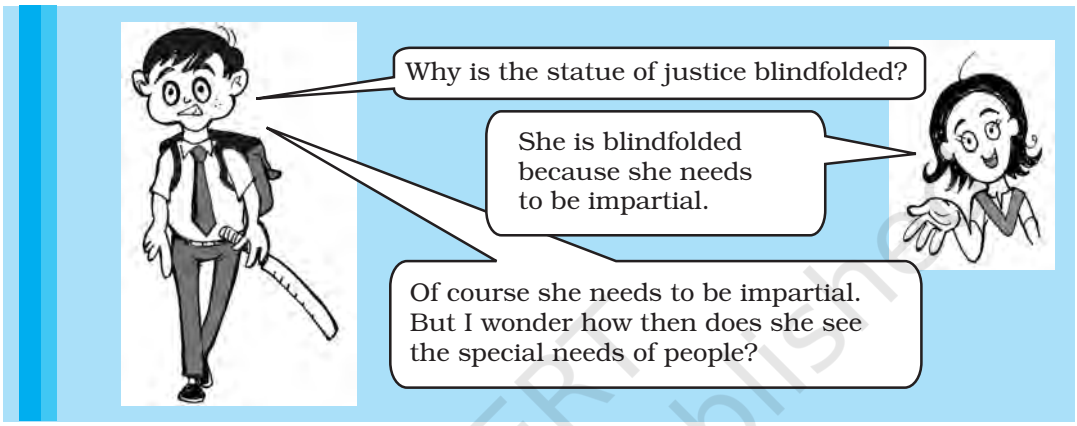
Examine the following situations and discuss whether they are just. In each case discuss the principle of justice that might be used in defence of your argument.

- Suresh, a visually impaired student, gets three hours and thirty minutes to finish his mathematics paper, while the rest of the class gets only three hours.
- Geeta walks with a limp. The teacher decided to give her also three hours and thirty minutes to finish her mathematics paper.
- A teacher gives grace marks to the weaker students in class, to boost their morale.
- A professor distributes different question papers to different students based on her evaluation of their capabilities.
- There is a proposal to reserve 33 per cent of the seats in the Parliament for women.

People with special needs or disabilities could be considered unequal in some particular respect and deserving of special help. But it is not always easy to get agreement regarding which inequalities of people should be recognised for providing them special help. Physical disabilities, age or lack of access to good education or health care, are some of the factors which are considered grounds for special treatment in many countries. It is believed that if people who enjoy very different standard of living and opportunities are treated equally in all respects with those who have been deprived of even the basic minimum needs to live a healthy and productive life, the result is likely to be an unequal society, not an egalitarian and just one. In our country, lack of access to good education or health care and other such facilities is often found combined with

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social discrimination on grounds of caste. The Constitution therefore allowed for reservations of government jobs and quotas for admissions to educational institutions for people belonging to the Scheduled Castes and Tribes.



Our discussion of different principles of justice has indicated that governments might sometimes find it difficult to harmonise the three principles of justice which have been discussed — equal treatment for equals, recognition of different efforts and skills while determining rewards and burdens, and provision of minimum standard of living and equal opportunities to the needy. Pursuing equality of treatment by itself might sometimes work against giving due reward to merit. Emphasising rewarding merit as the main principle of justice might mean that marginalised sections would be at a disadvantage in many areas because they have not had access to facilities such as good nourishment or education. Different groups in the country might favour different policies depending upon which principle of justice they emphasise. It then becomes a function of governments to harmonise the different principles to promote a just society.

4.2 Just Distribution

To achieve social justice in society, governments might have to do more than just ensure that laws and policies treat individuals in a fair manner. Social justice also concerns the just distribution of goods and services, whether it is between nations or between different

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groups and individuals within a society. If there are serious economic or social inequalities in a society, it might become necessary to try and redistribute some of the important resources of the society to provide something like a level playing field for citizens. Therefore, within a country social justice would require not only that people be treated equally in terms of the laws and policies of the society but also that they enjoy some basic equality of life conditions and opportunities. This is seen as necessary for each person to be able to pursue his/her objectives and express himself. In our country for instance, the Constitution abolished the practice of untouchability to promote social equality and ensure that people belonging to 'lower' castes have access to temples, jobs and basic necessities like water. Different state governments have also taken some measures to redistribute important resources like land in a more fair manner by instituting land reforms.

Differences of opinion on matters such whether, and how, to distribute resources and ensure equal access to education and jobs arouse fierce passions in society and even sometimes provoke violence. People believe the future of themselves and their families may be at stake. We have only to remind ourselves about the anger and even violence which has sometimes been roused by proposals to reserve seats in educational institutions or in government employment in our country. As students of political theory however we should be able to calmly examine the issues involved in terms of our understanding of the principles of justice. Can schemes to help the disadvantaged be justified in terms of a theory of justice? In the next section, we will discuss the theory of just distribution put forward by the well-known political philosopher, John Rawls. Rawls has argued that there could indeed be a rational justification for acknowledging the need to provide help to the least privileged members of a society.

4.3 John Rawls' Theory of Justice

If people are asked to chose the kind of society in which they would like to live, they are likely to chose one in which the rules and organisation of society allot them a privileged position. We cannot expect everyone to put aside their personal interests and think of

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the good of society, especially if they believe that their decision is going to have an impact on the kind of life and opportunities their children will have in the future. Indeed, we often expect parents to think of and support what is best for their children. But such perspectives cannot form the basis of a theory of justice for a society. So how do we reach a decision that would be both fair and just?

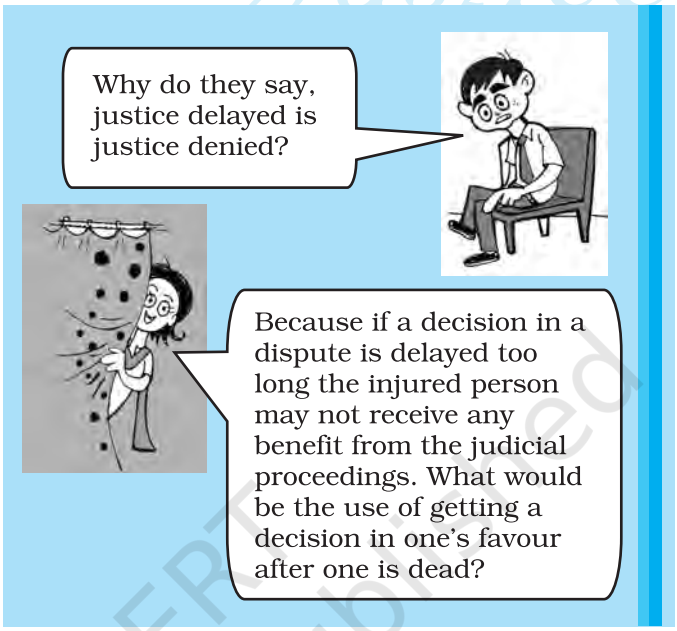
John Rawls has tried to answer this question. He argues that the only way we can arrive at a fair and just rule is if we imagine ourselves to be in a situation in which we have to make decisions about how society should be organised although we do not know which position we would ourselves occupy in that society. That is, we do not know what kind of family we would be born in, whether we would be born into an 'upper' caste or 'lower' caste family, rich or poor, privileged or disadvantaged. Rawls argues that if we do not know, in this sense, who we will be and what options would be available to us in the future society, we will be likely to support a decision about the rules and organisation of that future society which would be fair for all the members.

Rawls describes this as thinking under a 'veil of ignorance'. He expects that in such a situation of complete ignorance about our possible position and status in society, each person would decide in the way they generally do, that is, in terms of their own interests. But since no one knows who he would be, and what is going to benefit him, each will envisage the future society from the point of view of the worst-off. It will be clear to a person who can reason and think for himself, that those who are born privileged will enjoy certain special opportunities. But, what if they have the misfortune of being born in a disadvantaged section of society where few opportunities would be available to them? Hence, it would make sense for each person, acting in his or her own interest, to try to think of rules of organisation that will ensure reasonable opportunities to the weaker sections. The attempt will be to see that important resources, like education, health, shelter, etc., are available to all persons, even if they are not part of the upper class.

It is of course not easy to erase our identities and to imagine oneself under a veil of ignorance. But then it is equally difficult for

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most people to be self-sacrificing and share their good fortune with strangers. That is why we habitually associate self-sacrifice with heroism. Given these human failings and limitations, it is better for us to think of a framework that does not require extraordinary actions. The merit of the 'veil of ignorance' position is that it expects people to just be their usual rational selves: they are expected to think for themselves and choose what they regard to be in their interest. The pertinent thing however is that when they choose under the 'veil of ignorance' they will find that it is in their interest to think from the position of the worst-off.



Wearing the imagined veil of ignorance is the first step in arriving at a system of fair laws and policies. It will be evident that rational persons will not only see things from the perspective of the worst-off, they will also try to ensure that the policies they frame benefit the society as a whole. Both things have to go hand-in-hand. Since no one knows what position they will occupy in the future society, each will seek rules that protect them in case they happen to be born among the worst-off. But it would make sense if they also try to ensure that their chosen policy does not also make those who are better-off weaker because it is also possible that they could be born into a privileged position in the future society. Therefore, it would be in the interests of all that society as a whole should benefit from the rules and policies that are decided and not just any particular section. Such fairness would be the outcome of rational action, not benevolence or generosity.

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Rawls therefore argues that rational thinking, not morality, could lead us to be fair and judge impartially regarding how to distribute the benefits and burdens of a society. In his example, there are no goals or norms of morality that are given to us in advance and we remain free to determine what is best for ourselves. It is this belief which makes Rawls' theory an important and compelling way to approach the question of fairness and justice.

4.4 Pursuing Social Justice

If in a society deep and persistent divisions exist between those who enjoy greater wealth and property, and the power which goes with such ownership, and those who are excluded and deprived, we would say that social justice is lacking there. We are not talking here merely about the different standards of living which may be enjoyed by different individuals in a society. Justice does not require absolute equality and sameness in the way in which people live. But a society would be considered unjust if the differences between rich and poor are so great that they seem to be living in different worlds altogether, and if the relatively deprived have no chance at all to improve their condition however hard they may work. In other words, a just society should provide people with the basic minimum conditions to enable them to live healthy and secure lives and develop their talents as well as equal opportunities to pursue their chosen goals in society.

Let's Do It

Various calculations of the minimum requirements of food, income, water and such facilities have been made by government agencies and U.N. agencies. Search in your school library, or on the internet, for any such calculations.

How can we decide what are the basic minimum conditions of life needed by people? Various methods of calculating the basic needs of people have been devised by different governments and by international organisations like the World Health Organisation. But in general it is agreed that the basic amount of nourishment needed to remain healthy, housing, supply of clean drinking water, education and a minimum wage would constitute an important part of these basic conditions. Providing people with their basic needs is considered to be one of the responsibilities of a democratic government. However, providing such basic conditions of life to all citizens may pose a heavy burden on governments, particularly in countries like India which have a large number of poor people.

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Even if we all agree that states should try and help the most disadvantaged members of the society to enjoy some degree of equality with others, disagreements could still arise regarding the best methods of achieving this goal. A debate is currently going on in our society, as well as in other parts of the world, about whether promoting open competition through free markets would be the best way of helping the disadvantaged without harming the better-off members of a society, or whether the government should take on the responsibility of providing a basic minimum to the poor, if necessary even through a redistribution of resources. In our country these different approaches are being supported by different political groups who debate the relative merits of different schemes for helping marginalised sections of the population such as the rural or urban poor. We will briefly examine this debate.

A Just society is that society in which ascending sense of reverence and descending sense of contempt is dissolved into the creation of a compassionate society

– B.R. Ambedkar



Free Markets versus State Intervention

Supporters of free markets maintain that as far as possible, individuals should be free to own property and enter into contracts and agreements with others regarding prices and wages and profits. They should be free to compete with each other to gain the greatest amount of benefit. This is a simple description of a free market. Supporters of the free market believe that if markets are left free of state interference the sum of market transactions would ensure overall a just distribution of benefits and duties in society. Those with merit and talent would be rewarded accordingly while the

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incompetent would get a lesser reward. They would maintain that whatever be the outcome of market distribution it would be just.

However, not all free market supporters today would support absolutely unregulated markets. Many would now be willing to accept certain restrictions, for instance, states could step in to ensure a basic minimum standard of living to all people so that they are able to compete on equal terms. But they might argue that even here the most efficient way of providing people with basic services might be to allow markets in health care, education, and such services, to develop. In other words, private agencies should be encouraged to provide such services while state policies should try to empower people to buy those services. It might also be necessary for the state to give special help to the old and the sick who cannot compete. But apart from this, the role of the state should only be to maintain a framework of laws and regulations to ensure that competition between individuals remains free of coercion and other obstacles. They maintain that a free market is the basis of a fair and just society. The market, it is said, does not care about the caste or religion of the person; it does not see whether you are a man or a woman. It is neutral and concerned with the talents and skills that you have. If you have the merit, then nothing else matters.

One of the arguments put forward in favour of market distribution is that it gives us more choices. There is no doubt that the market system gives us more choices as consumers. We can choose the rice we eat and the school we go to, provided that we have the means to pay for them. But regarding basic goods and services what is important is the availability of good quality goods and services at a cost people can afford. If private agencies do not find this profitable for them, they may prefer not to enter that particular market, or to provide cheap and substandard services. That is why there may be few private schools in remote rural areas and the few which have been set up may be of low quality. The same would be true of health care or housing. In such situations the government might have to step in.

Another argument often heard in defence of free markets and private enterprise is that the quality of services they provide is often

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superior to that provided in government institutions. But the cost of such services may put them out of the reach of the poor. Private business tends to go where business would be most profitable and hence free markets eventually tend to work in the interest of the strong, the wealthy and the powerful. The result may be to deny, rather than extend, opportunities for those who are relatively weak and disadvantaged.

Arguments can be put forward on both sides of the debate but free markets often exhibit a tendency to work in favour of the already privileged. This is why many argue that to ensure social justice the state should step in to see that basic facilities are made available to all the members of a society.

In a democratic society disagreements about issues of distribution and justice are inevitable and even healthy because they force us to examine different points of view and rationally defend our own views. Politics is about the negotiation of such disagreements through debate. In our own country many kinds of social and economic inequalities exist and much remains to be done if they are to be reduced. Studying the different principles of justice should help us to discuss the issues involved and come to an agreement regarding the best way of pursuing justice.

> Justice implies something which it is not only right to do and wrong not to do; but which some individual person can claim from us as his moral right.
>
> *– J. S. Mill*

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1. What does it mean to give each person his/her due? How has the meaning of "giving each his due" changed over time?

2. Briefly discuss the three principles of justice outlined in the chapter? Explain each with examples.

3. Does the principle of considering the special needs of people conflict with the principle of equal treatment for all?

4. How does Rawls use the idea of a veil of ignorance to argue that fair and just distribution can be defended on rational grounds?

5. What are generally considered to be the basic minimum requirements of people for living a healthy and productive life? What is the responsibility of governments in trying to ensure this minimum to all?

6. Which of the following arguments could be used to justify state action to provide basic minimum conditions of life to all citizens?
   (a) Providing free services to the poor and needy can be justified as an act of charity.
   (b) Providing all citizens with a basic minimum standard of living is one way of ensuring equality of opportunity.
   (c) Some people are naturally lazy and we should be kind to them.
   (d) Ensuring basic facilities and a minimum standard of living to all is a recognition of our shared humanity and a human right.

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Chapter 5

Rights

Overview

In everyday life we often talk of our rights. As members of a democratic country we may speak of such rights as the right to vote, the right to form political parties, the right to contest elections and so on. But apart from the generally accepted political and civil rights, people today are also making new demands for rights such as the right to information, right to clean air or the right to safe drinking water. Rights are claimed not only in relation to our political and public lives but also in relation to our social and personal relationships. Moreover, rights may be claimed not only for adult human beings but also for children, unborn foetuses, and even animals. The notion of rights is thus invoked in a variety of different ways by different people. In this chapter we will explore:

- What do we mean when we speak of rights?
- What is the basis on which rights are claimed?
- What purpose do rights serve and, why are they so important?

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5.1 What are Rights?

A right is essentially an entitlement or a justified claim. It denotes what we are entitled to as citizens, as individuals and as human beings. It is something that we consider to be due to us; something that the rest of society must recognise as being a legitimate claim that must be upheld. This does not mean that everything that I regard to be necessary and desirable is a right. I may want to wear the clothes of my choice to school rather than the prescribed uniform. I may want to stay out late at night but this does not mean that I have a right to dress in any way I like at school or to return home when I choose to do so. There is a distinction between what I want and think I am entitled to, and what can be designated as rights.

Rights are primarily those claims that I along with others regard to be necessary for leading a life of respect and dignity. In fact, one of the grounds on which rights have been claimed is that they represent conditions that we collectively see as a source of self-respect and dignity. For example, the right to livelihood may be considered necessary for leading a life of dignity. Being gainfully employed gives a person economic independence and thus is central for his/her dignity. Having our basic needs met gives us freedom to pursue our talents and interests. Or, take the right to express ourselves freely. This right gives us the opportunity to be creative and original, whether it be in writing, or dance, or music, or any other creative activity. But freedom of expression is also important for democratic government since it allows for the free expression of beliefs and opinions. Rights such as the right to a livelihood, or freedom of expression, would be important for all human beings who live in society and they are described as universal in nature.

Another ground on which rights have been claimed is that they are necessary for our well-being. They help individuals to develop their talents and skills. A right like the right to education, for instance, helps to develop our capacity to reason, gives us useful skills and enables us to make informed choices in life. It is in this sense that education can be designated as a universal right. However, if an activity is injurious to our health and well-being it cannot be

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claimed as a right. For instance, since medical research has shown that prohibited drugs are injurious to one's health and since they affect our relations with others, we cannot insist that we have a right to inhale or inject drugs or smoke tobacco. In the case of smoking it may even be injurious to the health of people who may be around the smoker. Drugs may not only injure our health but they may also sometimes change our behaviour patterns and make us a danger to other people. In terms of our definition of rights, smoking or taking banned drugs cannot be claimed as a right.

Let's Do It

Go through recent newspapers and make a list of people's movements that have made proposals for new kinds of rights?

5.2 Where Do Rights Come From?

In the seventeenth and eighteenth centuries, political theorists argued that rights are given to us by nature or God. The rights of men were derived from natural law. This meant that rights were not conferred by a ruler or a society, rather we are born with them. As such these rights are inalienable and no one can take these away from us. They identified three natural rights of man: the right to life, liberty and property. All other rights were said to be derived from these basic rights. The idea that we are born with certain rights, is a very powerful notion because it implies that no state or organisation should take away what has been given by the law of nature. This conception of natural rights has been used widely to oppose the exercise of arbitrary power by states and governments and to safeguard individual freedom.

In recent years, the term human rights is being used more than the term natural rights. This is because the idea of there being a natural law, or a set of norms that are laid down for us by nature, or God, appears unacceptable today. Rights are increasingly seen as guarantees that human beings themselves seek or arrive at in order to lead a minimally good life.

The assumption behind human rights is that all persons are entitled to certain things simply because they are human beings. As a human being each person is unique and equally valuable. This means that all persons are equal and no one is born to serve others.

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Kant on Human Dignity

" ... everything has either a price or a dignity. What has a price is such that something else can also be put in its place as its equivalent; by contrast, that which is elevated above all price, and admits of no equivalent, has a dignity.

'Human beings', unlike all other objects, possess dignity. They are, for this reason valuable in themselves. For the eighteenth century German philosopher, Immanuel Kant, this simple idea had a deep meaning. It meant that every person has dignity and ought to be so treated by virtue of being a human being. A person may be uneducated, poor or powerless. He may even be dishonest or immoral. Yet, he remains a human being and deserves to be given some minimum dignity.

For Kant, to treat people with dignity was to treat them morally. This idea became a rallying point for those struggling against social hierarchies and for human rights.

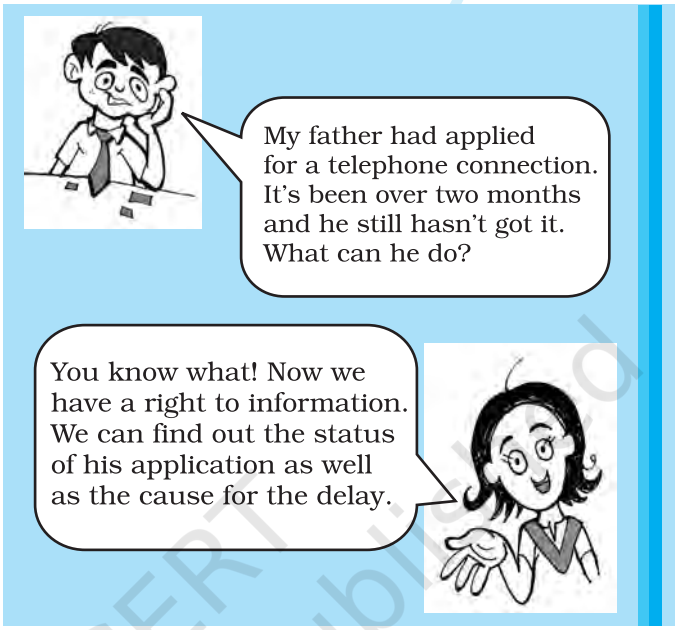
Kant's views represent, what is called, the moral conception of rights. This position rests upon two arguments. First, we should be treating others as we would like to be treated ourselves. Second, we should make sure that we don't treat the other person as means to our ends. We should not treat people as we treat a pen, a car, or a horse. That is, we should respect people not because they are useful to us but because they are, after all, human beings.

Each of us possesses an intrinsic value, hence we must have equal opportunities to be free and realise our full potential. This conception of a free and equal self is increasingly being used to challenge existing inequalities based on race, caste, religion and gender. Today, the UN Universal Declaration of Human Rights builds upon this understanding of rights and it attempts to recognise those claims that the world community collectively sees as being important for leading a life of dignity and self-respect.

The notion of universal human rights has been used by oppressed people all over the world to challenge laws which segregate them and deny them equal opportunities and rights. In fact, it is through the struggles of groups that have felt excluded that the interpretation of existing rights has sometimes been altered. Slavery has, for instance, been abolished, but there are other struggles that have only had a limited success. Even today there are communities struggling to define humanity in a way which includes them.

The list of human rights which people have claimed has expanded over the years as societies face new threats and challenges. For instance, we are very conscious

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today of the need to protect the natural environment and this has generated demands for rights to clean air, water, sustainable development, and the like. A new awareness about the changes which many people, especially women, children or the sick, face in times of war or natural crisis has also led to demands for a right to livelihood, rights of children and the like. Such claims express a sense of moral outrage about infringements of peoples' dignity and they also act as a rallying call to people to try and extend rights to all human beings. We should not understate the extent and power of such claims. They often invoke wide support. You may have heard about the pop star Bob Geldof 's recent appeal to western governments to end poverty in Africa and seen T.V. reports about the scale of support which he received from ordinary people.

5.3 Legal Rights and the State

While claims for human rights appeal to our moral self, the degree of success of such appeals depends on a number of factors, most important of which is the support of governments and the law. This is why so much importance is placed on the legal recognition of rights.

A Bill of Rights is enshrined in the constitutions of many countries. Constitutions represent the highest law of the land and so constitutional recognition of certain rights gives them a primary importance. In our country we call them Fundamental Rights. Other laws and policies are supposed to respect the rights granted in the Constitution. The rights mentioned in the Constitution would be

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those which are considered to be of basic importance. In some cases these may be supplemented by claims which gain importance because of the particular history and customs of a country. In India, for instance, we have a provision to ban untouchability which draws attention to a traditional social practice in the country.

So important is the legal and constitutional recognition of our claims that several theorists define rights as claims that are recognised by the state. The legal endorsement certainly gives our rights a special status in society but it is not the basis on which rights are claimed. As we discussed earlier, rights have steadily been expanded and reinterpreted to include previously excluded groups and to reflect our contemporary understanding of what it means to lead a life of dignity and respect.

However, in most cases the claimed rights are directed towards the state. That is, through these rights people make demands upon the state. When I assert my right to education, I call upon the state to make provisions for my basic education. Society may also accept the importance of education and contribute to it on its own. Different groups may open schools and fund scholarships so that children of all classes can get the benefit of education. But the primary responsibility rests upon the state. It is the state that must initiate necessary steps to ensure that my right to education is fulfilled.

Thus, rights place an obligation upon the state to act in certain kinds of ways. Each right indicates what the state must do as well as what it must not do. For instance, my right to life obliges the state to make laws that protect me from injury by others. It calls upon the state to punish those who hurt me or harm me. If a society feels that the right to life means a right to a good quality of life, it expects the state to pursue policies that provide for clean environment along with other conditions that may be necessary for a healthy life. In other words, my right here places certain obligations upon the state to act in a certain way.

Rights not only indicate what the state must do, they also suggest what the state must refrain from doing. My right to liberty as a person, for instance, suggests that the state cannot simply arrest me at its own will. If it wishes to put me behind bars, it must defend that action;

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it must give reasons for curtailing my liberty before a judicial court. This is why the police are required to produce an arrest warrant before taking me away. My rights thus place certain constraints upon state actions.

To put it another way, our rights ensure that the authority of the state is exercised without violating the sanctity of individual life and liberty. The state may be the sovereign authority; the laws it makes may be enforced with force, but the sovereign state exists not for its own sake but for the sake of the individual. It is people who matter more and it is their well-being that must be pursued by the government in power. The rulers are accountable for their actions and must not forget that law exists to ensure the good of the people.

Let's Do It

Go through the newspapers of the last few days and identify cases of rights violations which have been discussed. What should the government and civil society do to prevent such violations?

5.4 Kinds of Rights

Most democracies today begin by drawing up a charter of political rights. Political rights give to the citizens the right to equality before law and the right to participate in the political process. They include such rights as the right to vote and elect representatives, the right to contest elections, the right to form political parties or join them. Political rights are supplemented by civil liberties. The latter refers to the right to a free and fair trial, the right to express one's views freely, the right to protest and express dissent. Collectively, civil liberties and political rights form the basis of a democratic system of government. But, as was mentioned before, rights aim to protect the well-being of the individual. Political rights contribute to it by making the government accountable to the people, by giving greater importance to the concerns of the individual over that of the rulers and by ensuring that all persons have an opportunity to influence the decisions of the government.

However, our rights of political participation can only be exercised fully when our basic needs, of food, shelter, clothing, health, are met. For a person living on the pavements and struggling to meet these basic needs, political rights by themselves have little value. They require certain facilities like an adequate wage to meet their

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basic needs and reasonable conditions of work. Hence democratic societies are beginning to recognise these obligations and providing economic rights. In some countries, citizens, particularly those with low incomes, receive housing and medical facilities from the state; in others, unemployed persons receive a certain minimum wage so that they can meet their basic needs. In India the government has recently introduced a rural employment guarantee scheme, among other measures to help the poor.

Today, in addition to political and economic rights more and more democracies are recognising the cultural claims of their citizens. The right to have primary education in one's mother tongue, the right to establish institutions for teaching one's language and culture, are today recognised as being necessary for leading a good life. The list of rights has thus steadily increased in democracies. While some rights, primarily the right to life, liberty, equal treatment, and the right to political participation are seen as basic rights that must receive priority, other conditions that are necessary for leading a decent life, are being recognised as justified claims or rights.

Let's Debate

The right to culture means that no one should be allowed to make films that offend the religious or cultural beliefs of others.



Let's Think

Which of the following rights granted to groups/ communities are justifiable? Discuss.

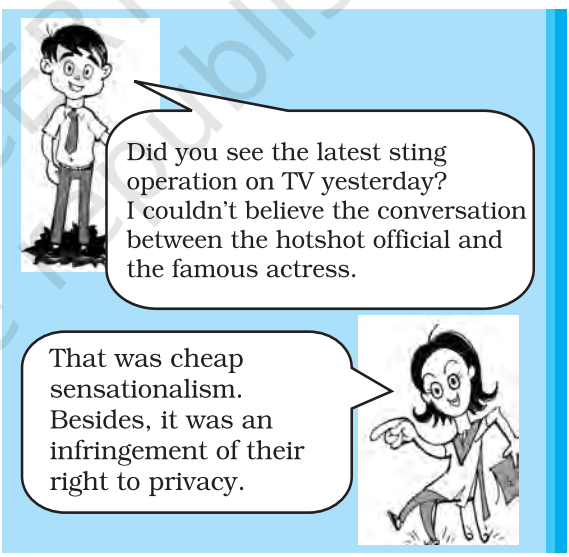
- Jain community in a town sets up its own school and enrols students only from its own community.
- Purchase of land or property in Himachal Pradesh is restricted to those who are residents in that state.
- The principal of a co-ed college issued a circular that no girl should wear any 'western' dress.
- A Panchayat in Haryana decided that the boy and the girl from different castes who married each other will not be allowed to live in the village.

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5.5 Rights and Responsibilities

Rights not only place obligations upon the state to act in a certain way — for instance, to ensure sustainable development — but they also place obligations upon each of us. Firstly, they compel us to think not just of our own personal needs and interests but to defend some things as being good for all of us. Protecting the ozone layer, minimising air and water pollution, maintaining the green cover by planting new trees and preventing cutting down of forests, maintaining the ecological balance, are things that are essential for all of us. They represent the 'common-good' that we must act to protect for ourselves as well as for the future generations who are entitled to inherit a safe and clean world without which they cannot lead a reasonably good life.

Secondly, they require that I respect the rights of others. If I say that I must be given the right to express my views I must also grant the same right to others. If I do not want others to interfere in the choices I make — the dress I wear or the music I listen to — I must refrain from interfering in the choices that others make. I must leave them free to choose their music and clothes. I cannot use the right to free speech to incite a crowd to kill my neighbour. In exercising my rights, I cannot deprive others of their rights. My rights are, in other words, limited by the principle of equal and same rights for all.



Thirdly, we must balance our rights when they come into conflict. For instance, my right to freedom of expression allows me to take pictures; however, if I take pictures of a person bathing in his house without his consent and post them on the internet, that would be a violation of his right to privacy.

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Fourthly, citizens must be vigilant about limitations which may be placed on their rights. A currently debated topic concerns the increased restrictions which many governments are imposing on the civil liberties of citizens on the grounds of national security. Protecting national security may be defended as necessary for safeguarding the rights and well-being of citizens. But at what point could the restrictions imposed as necessary for security themselves become a threat to the rights of people? Should a country facing the threat of terrorist bombings be allowed to curtail the liberty of citizens? Should it be allowed to arrest people on mere suspicion? Should it be allowed to intercept their mail or tap their phones? Should it be allowed to use torture to extract confession?

In such situations the question to ask is whether the person concerned poses an imminent threat to society. Even arrested persons should be allowed legal counsel and the opportunity to present their case before a magistrate or a court of law. We need to be extremely cautious about giving governments powers which could be used to curtail the civil liberties of individuals for such powers can be misused. Governments can become authoritarian and undermine the very reasons for which governments exist — namely, the well-being of the members of the state. Hence, even though rights can never be absolute, we need to be vigilant in protecting our rights and those of others for they form the basis of a democratic society.

Let's Debate

One man's rights end where the other man's nose begins.

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On 10 December 1948, the General Assembly of the United Nations adopted and proclaimed the **Universal Declaration of Human Rights**. Following this historic act the Assembly called upon all Member countries to publicise the text of the Declaration and "to cause it to be disseminated, displayed, read and expounded principally in schools and other educational institutions, without distinction based on the political status of countries or territories."

PREAMBLE

Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world,

Whereas disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind, and the advent of a world in which human beings shall enjoy freedom of speech and belief and freedom from fear and want has been proclaimed as the highest aspiration of the common people,

Whereas it is essential, if man is not to be compelled to have recourse, as a last resort, to rebellion against tyranny and oppression, that human rights should be protected by the rule of law,

Whereas it is essential to promote the development of friendly relations between nations,

Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights, in the dignity and worth of the human person and in the equal rights of men and women and have determined to promote social progress and better standards of life in larger freedom,

Whereas Member States have pledged themselves to achieve, in co-operation with the United Nations, the promotion of universal respect for and observance of human rights and fundamental freedoms,

Whereas a common understanding of these rights and freedoms is of the greatest importance for the full realisation of this pledge,

Now, therefore THE GENERAL ASSEMBLY proclaims THIS UNIVERSAL DECLARATION OF HUMAN RIGHTS as a common standard of achievement for all peoples and all nations, to the end that every individual and every organ of society, keeping this Declaration constantly in mind, shall strive by teaching and education to promote respect for these rights and freedoms and by progressive measures, national and international, to secure their universal and effective recognition and observance, both among the peoples of Member States themselves and among the peoples of territories under their jurisdiction.

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For more details, visit www.un.org



1. What are rights and why are they important? What are the bases on which claims to rights can be made?

2. On what grounds are some rights considered to be universal in nature? Identify three rights which you consider universal. Give reasons.

3. Discuss briefly some of the new rights claims which are being put forward in our country today — for example the rights of tribal peoples to protect their habitat and way of life, or the rights of children against bonded labour.

4. Differentiate between political, economic and cultural rights. Give examples of each kind of right.

5. Rights place some limits on the authority of the state. Explain with examples.

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Chapter 6

Citizenship

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Overview

Citizenship implies full and equal membership of a political community. In this chapter we will explore what exactly this means today. In Sections 6.2 and 6.3 we will look at some debates and struggles which are going on regarding the interpretation of the term 'full and equal membership'. Section 6.4 will discuss the relationship between citizens and the nation and the criteria of citizenship adopted in different countries. Theories of democratic citizenship claim that citizenship should be universal. Does this mean that every person today should be accepted as a member of one or other state? then How can we explain the existence of so many stateless people? This issue will be discussed in Section 6.5. The last section 6.6 will discuss the issue of global citizenship. Does it exist and could it replace national citizenship?

After going through this chapter you should be able to

- explain the meaning of citizenship, and
- discuss some of the areas in which that meaning is being expanded or challenged today.

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6.1 Introduction



Citizenship has been defined as full and equal membership of a political community. In the contemporary world, states provide a collective political identity to their members as well as certain rights. Therefore we think of ourselves as Indians, or Japanese, or Germans, depending on the state to which we belong. Citizens expect certain rights from their state as well as help and protection wherever they may travel.

The importance of full membership of a state can be appreciated if we think of the condition of the thousands of people in the world who have the bad fortune to be forced to live as refugees or illegal migrants because no state is willing to grant them membership. Such people are not guaranteed rights by any state and generally live in precarious conditions. For them full membership of a state of their choice is a goal for which they are willing to struggle, as we see today with Palestinian refugees in the Middle East.



The precise nature of the rights granted to citizens may vary from state to state but in most democratic countries today they would include some political rights like the right to vote, civil rights like the freedom of speech or belief, and some socio-economic rights which could include the right to a minimum wage, or the right to education. Equality of rights and status is one of the basic rights of citizenship.

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Each of the rights now enjoyed by citizens has been won after struggle. Some of the earliest struggles were fought by people to assert their independence and rights against powerful monarchies. Many European countries experienced such struggles, some of them violent, like the French Revolution in 1789. In the colonies of Asia and Africa, demands for equal citizenship formed part of their struggle for independence from colonial rulers. In South Africa, the black African population had to undertake a long struggle against the ruling white minority for equal citizenship. This continued until the early 1990s. Struggles to achieve full membership and equal rights continue even now in many parts of the world. You may have read about the women's movement and the *dalit* movement in our country. Their purpose is to change public opinion by drawing attention to their needs as well as to influence government policy to ensure them equal rights and opportunities.



Let's Think

During seventeenth to twentieth century, white people of Europe established their rule over the black people in South Africa. Read the following description about the policy practices in South Africa till 1994.

The whites had the right to vote, contest elections and elect government; they were free to purchase property and go to any place in the country. Blacks did not have such rights. Separate colonies for whites and blacks were established. The blacks had to take 'passes' to work in white neighbourhoods. They were not allowed to keep their families in the white areas. The schools were also separate for the people of different colour.

- Do you think the Blacks had full and equal membership in South Africa? Give reasons.
- What does the above description tell us about the relationship of different groups in South Africa?

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Let's Do It

Think of some examples of activities of citizens in your area intended to help others, or improve the area, or protect the environment. List some of the activities which could be undertaken by young people of your age-group.

However, citizenship is about more than the relationship between states and their members. It is also about citizen-citizen relations and involves certain obligations of citizens to each other and to the society. These would include not just the legal obligations imposed by states but also a moral obligation to participate in, and contribute to, the shared life of the community. Citizens are also considered to be the inheritors and trustees of the culture and natural resources of the country.

A good way to understand a political concept is to look for instances where its accepted meaning is being questioned by groups who feel that it does not take account of their needs and aspirations.

6.2 Full and Equal Membership

If you have ever travelled in a crowded railway compartment or bus you will be familiar with the way in which those who may have earlier fought each other to enter, once inside discover a shared interest in keeping others out! A division soon develops between 'insiders' and 'outsiders' with 'outsiders' being seen as a threat.



Similar processes take place from time to time in cities, regions, or even the nation as a whole. If jobs, facilities like medical care or education, and natural resources like land or water, are limited, demands may be made to restrict entry to 'outsiders' even though they may be fellow citizens. You may remember the slogan 'Mumbai for Mumbaikars' which expressed such feelings. Many similar struggles have taken place in different parts of India and the world.

This raises questions about what 'full and equal membership' really means? Does it mean that citizens should enjoy equal rights

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and opportunities wherever in the country they may decide to live, study, or work? Does it mean that all citizens, rich or poor, should enjoy certain basic rights and facilities?

In this section we will explore the meaning of citizenship by focusing on the first of these questions.

One of the rights granted to citizens in our country, and in many others, is freedom of movement. This right is of particular importance for workers. Labour tends to migrate in search of jobs when opportunities are not available near their homes. Some people may even travel outside the country in search of jobs. Markets for skilled and unskilled workers have developed in different parts of our country. For instance, I.T. workers may flock to towns like Bangalore. Nurses from Kerala may be found all over the country. The booming building industry in town attracts workers from different parts of the

Martin Luther King

The 1950s witnessed the emergence of Civil Rights Movements against inequalities that existed between black and white populations in many of the southern states of the USA. Such inequalities were maintained in these states by a set of laws called Segregation Laws through which the black people were denied many civil and political rights. These laws created separate areas for coloured and white people in various civic amenities like railways, buses, theatres, housing, hotels, restaurants, etc.

Martin Luther King Jr. was a black leader of the movement against these laws. King gave many arguments against the prevailing laws of segregation. First, in terms of self-worth and dignity every human person in the world is equal regardless of one's race or colour. Second, King argued that segregation is like 'social leprosy' on the body politic because it inflicts deep psychological wounds on the people who suffer as a result of such laws.

King argued that the practice of segregation diminishes the quality of life for the white community also. He illustrates this point by examples. The white community, instead of allowing the black people to enter some community parks as was directed by the court, decided to close them. Similarly, some baseball teams had to be disbanded, as the authorities did not want to accept black players. Thirdly, the segregation laws create artificial boundaries between people and prevent them from cooperating with each other for the overall benefit of the country. For these reasons, King argued that these laws should be abolished. He gave a call for peaceful and non-violent resistance against the segregation laws. He said in one of his speeches: "We must not allow our creative protest to degenerate into physical violence."

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country. So do infrastructure projects like road making. You may have come across workers from different regions near your home or school.

However, often resistance builds up among the local people against so many jobs going to people from outside the area, sometimes at lower wages. A demand may develop to restrict certain jobs to those who belong to the state, or those who know the local language. Political parties may take up the issue. Resistance could even take the form of organised violence against 'outsiders'. Almost every region of India has experienced such movements. Are such movements ever justified?

We all become indignant, if Indian workers in other countries are ill-treated by the local population. Some of us may also feel that skilled and educated workers have the right to migrate for work. States may even be proud of their ability to attract such workers. But if jobs are scarce in a region, local residents may resent competition from 'outsiders'. Does the right to freedom of movement include the right to live or work in any part of the country?

Another factor that we need to consider is that there may sometimes be a difference between our response to poor migrants and to skilled migrants. We may not always be as welcoming to poor migrants who move into our areas as we may be to skilled and affluent workers. This raises the question of whether poor and unskilled workers should have the same right to live and work anywhere in the country as do skilled workers? These are some of the issues which are being debated in our country today regarding 'full and equal membership' for all citizens of the country.

However, disputes may sometimes arise even in democratic societies. How can such disputes be resolved? The right to protest is an aspect of the freedom of expression guaranteed to citizens in our Constitution, provided protest does not harm the life or property of other people or the State. Citizens are free to try and influence public opinion and government policy by forming groups, holding demonstrations, using the media, appealing to political parties, or by approaching the courts. The courts may give a decision on the

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matter, or they may urge the government to address the issue. It may be a slow process but varying degrees of success are sometimes possible. If the guiding principle of providing full and equal membership to all citizens is kept in mind, it should be possible to arrive at an acceptable solution to the problems that may arise from time to time in a society. A basic principle of democracy is that such disputes should be settled by negotiation and discussion rather than force. This is one of the obligations of citizenship.



Let's Think

Examine the arguments for and against freedom of movement and occupation throughout the country for citizens.

Should the long-term inhabitants of a region enjoy preference for jobs and facilities?

Or, should states be allowed to fix quotas for admissions to professional colleges for students who do not belong to that state?

6.3 Equal Rights

In this section we will examine another aspect of citizenship, that is, the issue of whether full and equal membership means that all citizens, rich or poor, should be guaranteed certain basic rights and a minimum standard of living by the state. To discuss this issue, we will look at one set of people, that is the urban poor. Dealing with the problem of the poor in towns is one of the urgent problems facing the government today.

There is a large population of slum-dwellers and squatters in every city in India. Although they may do necessary and useful work, often at low wages, they are often viewed as unwelcome visitors by the rest of the town population. They may be blamed for straining the resources of the city or for spreading crime and disease.

The conditions in slums are often shocking. Many people may be crammed into small rooms with no private toilets, running water, or sanitation. Life and property are insecure in a slum. However,

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slum dwellers make a significant contribution to the economy through their labour. They may be hawkers, petty traders, scavengers, or domestic workers, plumbers, or mechanics, among other professions. Small businesses such as cane weaving, or textile printing, or tailoring, may also develop in slums. The city probably spends relatively little on providing slum-dwellers with services such as sanitation or water supply.

Citizenship, Equality and Rights

Citizenship is not merely a legal concept. It is also closely related to larger notions of equality and rights. A widely accepted formulation of this relationship was provided by the British sociologist, T. H. Marshall (1893-1981). In his book *Citizenship and Social Class* (1950), Marshall defined citizenship as "a status bestowed on those who are full members of a community. All who possess the status are equal with respect to the rights and duties with which the status is endowed."

The key concept in Marshall's idea of citizenship is that of 'equality'. This implies two things: first, that quality of the given rights and duties improves. Second, that the quantity of people upon whom they are bestowed grows.

Marshall sees citizenship as involving three kinds of rights: civil, political and social.

Civil rights protect the individual's life, liberty and property. Political rights enable the individual to participate in the process of governance. Social rights give the individual access to education and employment. Together they make it possible for the citizen to lead a life of dignity.

Marshall saw social class as a 'system of inequality'. Citizenship ensures equality by countering the divisive effects of class hierarchy. It thus facilitates the creation of a better-integrated and harmonious community.

Awareness about the condition of the urban poor is growing among governments, N.G.O's and other agencies, and among the slum-dwellers themselves. For instance, a national policy on urban street vendors was framed in January 2004. There are lakhs of street vendors in big cities and they often face harassment from the police and town authorities. The policy was intended to provide recognition and regulation for vendors to enable them to carry on their profession without harassment so long as they obeyed government regulations.

Slum-dwellers also are becoming aware of their rights and are beginning to organise to demand them. They have sometimes even

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Citizenship, Equality and Rights

The Supreme Court gave an important decision regarding the rights of slum-dwellers in Bombay in response to a Public Interest Litigation filed by a social activist, Olga Tellis against Bombay Municipal Corporation in 1985. The petition claimed the right to live on pavements or in slums because there was no alternative accommodation available close to their place of work. If they were forced to move they would lose their livelihood as well. The Supreme Court said, "Article 21 of the Constitution which guaranteed the right to life included the right to livelihood. Therefore if pavement dwellers were to be evicted they should first be provided alternative accommodation under the right to shelter."

approached the courts. Even a basic political right like the right to vote may be difficult for them to exercise because to be included in the list of voters a fixed address is required and squatters and pavement dwellers may find it difficult to provide this.

Among other groups of people who are becoming marginalised in our society are the tribal people and forest dwellers. These people are dependent on access to forests and other natural resources to maintain their way of life. Many of them face threats to their way of life and livelihood because of the pressure of increasing populations and the search for land and resources to maintain them. Pressures from commercial interests wanting to mine the resources which may exist in forests or coasts poses another threat to the way of life and livelihood of forest dwellers and tribal peoples, as does the tourist industry. Governments are struggling with the problem of how to protect these people and their habitat without at the same time endangering development of the country. This is an issue that affects all citizens, not just tribal people.

To try and ensure equal rights and opportunities for all citizens cannot be a simple matter for any government. Different groups of people may have different needs and problems and the rights of one group may conflict with the rights of another. Equal rights for citizens need not mean that uniform policies have to be applied to all people since different groups of people may have different needs. If the purpose is not just to make policies which would apply in the same way to all people, but to make people more equal, the different needs and claims of people would have to be taken into account when framing policies.

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What should become clear from this discussion is that changes in the world situation, the economy, and society demand new interpretations of the meaning and rights of citizenship. The formal laws regarding citizenship only form the starting point and the interpretation of laws is constantly evolving. While answers to some the problems which may arise may not be easy to find, the concept of equal citizenship would mean that providing equal rights and protection to all citizens should be one of the guiding principles of government policies.



Let's Think

According to the official figures published about the land distribution in Zimbabwe, some 4,400 white families owned 32 per cent of agricultural land that is about 10m hectares. About one million black peasant families own just 16m hectares that is the 38 per cent of the land. While the land that is with the white families is fertile and irrigated, the land in the hands of black population is less fertile and unirrigated. While tracing the history of land ownership, it is very obvious that a century ago the whites had taken the fertile land from the native people. Whites have now been in Zimbabwe for generations and consider themselves as Zimbabweans. The total population of whites in Zimbabwe is just 0.06 per cent of the population. In the year 1997, the President of Zimbabwe, Mugabe announced the plans to take over around 1500 farms.

What ideas from citizenship would you use to support or oppose the claims of Black and White Citizens of Zimbabwe?

Let's Do It

Survey three families of workers working close to, or in, your homes or school. Find out details about their life. Where is their ancestral place? When and why did they come here? Where do they live? How many people share the accommodation? What kinds of facilities are available to them? Do their children attend school?

Let's Do It

Find out about the street vendors (Protection of Livelihood and Regulation of Street Vending) Act, 2014.

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6.4 Citizen and Nation

The concept of nation state evolved in the modern period. One of the earliest assertions regarding the sovereignty of the nation state and democratic rights of citizens was made by the revolutionaries in France in 1789. Nation states claim that their boundaries define not just a territory but also a unique culture and shared history. The national identity may be expressed through symbols like a flag, national anthem, national language, or certain ceremonial practices, among other things.

Most modern states include people of different religions, languages, and cultural traditions. But the national identity of a democratic state is supposed to provide citizens with a political identity that can be shared by all the members of the state. Democratic states usually try to define their identity so that it is as inclusive as possible — that is, which allows all citizens to identify themselves as part of the nation. But in practice, most countries tend to define their identity in a way which makes it easier for some citizens to identify with the state than others. It may also make it easier for the state to extend citizenship to some people and not others. This would be as true of the United States, which prides itself on being a country of immigrants, as any other country.

France, for instance, is a country which claims to be both secular and inclusive. It includes not only people of European origin but also citizens who originally came from other areas such as North Africa. Culture and language are important features of its national identity and all citizens are expected to assimilate into it in the public aspects of their lives. They may, however, retain their personal beliefs and practices in their private lives. This may seem like a reasonable policy but it is not always simple to define what is public and what is private and this has given rise to some controversies. Religious belief is supposed to belong to the private sphere of citizens but sometimes religious symbols and practices may enter into their public lives. You may have heard about the demand of Sikh school boys in France to wear the turban to school, and of Muslim girls to wear the head scarf with their school uniforms. This was disallowed

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by some schools on the ground that it involved bringing religious symbols into the public sphere of state education. Those whose religions did not demand such practices naturally did not face the same problem. Clearly, assimilation into the national culture would be easier for some groups than for others.

The criteria for granting citizenship to new applicants varies from country to country. In countries such as Israel, or Germany, factors like religion, or ethnic origin, may be given priority when granting citizenship. In Germany there has been a persistent demand from Turkish workers, who were at one time encouraged to come and work in Germany, that their children who have been born and brought up in Germany should automatically be granted citizenship. This is still being debated. These are only a few examples of the kinds of restrictions which may be placed on citizenship even in democratic countries which pride themselves on being inclusive.

India defines itself as a secular, democratic, nation state. The movement for independence was a broad based one and deliberate attempts were made to bind together people of different religions, regions and cultures. True, Partition of the country did take place in 1947 when differences with the Muslim League could not be resolved, but this only strengthened the resolve of Indian national leaders to maintain the secular and inclusive character of the Indian nation state they were committed to build. This resolve was embodied in the Constitution.

The Indian Constitution attempted to accommodate a very diverse society. To mention just a few of these diversities, it attempted to provide full and equal citizenship to groups as different as the Scheduled Castes and Scheduled Tribes, many women who had not previously enjoyed equal rights, some remote communities in the Andaman and Nicobar islands who had had little contact with modern civilization, and many others. It also attempted to find a place for the different languages, religions and practices found in different parts of the country. It had to provide equal rights to all without at the same time forcing people to give up their personal beliefs, languages or cultural practices. It was therefore a unique experiment which was undertaken through the Constitution. The Republic Day parade in

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Delhi symbolises the attempt of the state to include people of different regions, cultures and religions.

The provisions about citizenship in the Constitution can be found in Part Two and in subsequent laws passed by Parliament. The Constitution adopted an essentially democratic and inclusive notion of citizenship. In India, citizenship can be acquired by birth, descent, registration, naturalisation, or inclusion of territory. The rights and obligations of citizens are listed in the Constitution. There is also a provision that the state should not discriminate against citizens on grounds only of religion, race, caste, sex, place of birth, or any of them. The rights of religious and linguistic minorities are also protected.

LET'S DEBATE

It is not appropriate for schools, or any other public agencies like the army, to insist on a common uniform and to ban the display of religious symbols such as the turban.

However, even such inclusive provisions have given rise to struggles and controversies. The women's movement, the dalit movement, or struggles of people displaced by development projects, represent only a few of the struggles being waged by people who feel that they are being denied full rights of citizenship. The experience of India indicates that democratic citizenship in any country is a project, an ideal to work towards. New issues are constantly being raised as societies change and new demands are made by groups who feel they are being marginalised. In a democratic state these demands have to be negotiated.

6.5 Universal Citizenship

When we think of refugees, or illegal migrants, many images may come to mind. One may be of people from Asia or Africa who have paid agents to smuggle them into Europe or America. The risks are high but they seem willing to make the effort. Another image may be of people displaced by war or famine. Such images are often shown on the television. Refugees in the Darfur region of Sudan, Palestinians, Burmese or Bangladeshis, the examples are many. All these are people who have been forced to become refugees in their own, or neighbouring countries.

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We often assume that full membership of a state should be available to all those who ordinarily live and work in the country as well as to those who apply for citizenship. But although many states may support the idea of universal and inclusive citizenship, each of them also fixes criteria for the grant of citizenship. These would generally be written into the Constitution and laws of the country. States use their power to keep unwanted visitors out.

However, in spite of restrictions, even the building of walls or fences, considerable migration of peoples still takes place in the world. People may be displaced by wars, or persecution, famine, or other reasons. If no state is willing to accept them and they cannot return home, they become stateless peoples or refugees. They may be forced to live in camps, or as illegal migrants. Often they cannot legally work, or educate their children, or acquire property. The problem is so great that the U.N. has appointed a High Commissioner for Refugees to try to help them.

Decisions regarding how many people can be absorbed as citizens in a country poses a difficult humanitarian and political problem for many states. Many countries have a policy of accepting those fleeing from persecution or war. But they may not want to accept unmanageable number of people or expose the country to security risks. India prides itself on providing refuge to persecuted peoples, as it did with the Dalai Lama and his followers in 1959. Entry of people from neighbouring countries has taken place along all the borders of the Indian state and the process continues. Many of these people remain as stateless peoples for many years or generations, living in camps, or as illegal migrants. Only a relatively few of them are eventually granted citizenship. Such problems pose a challenge to the promise of democratic citizenship which is that the rights and identity of citizen would be available to all people in the contemporary world. Although many people cannot achieve citizenship of a state of their choice, no alternative identity exists for them.

The problem of stateless people is an important one confronting the world today. Borders of states are still being redefined by war or political disputes and for the people caught up in such disputes the consequences may be severe. They may lose their homes, political

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identities, and security, and be forced to migrate. Can citizenship provide a solution to the problems of such people? If not, what kind of alternative identity can be provided today? Do we need to try and evolve a more genuinely universal identity than national citizenship? Suggestions for a notion of global citizenship are sometimes put forward. The possibilities will be discussed in the next section.

Let's Do It

List some of the stateless people living in India today. Write a short note on any of them.

6.6 Global Citizenship

Consider the following statements:

- *There was an outpouring of sympathy and help for the victims of the tsunami which affected a number of countries in South Asia in 2004.*
- *International networks link terrorists today.*
- *The United Nations is working with different states to try and prevent the spread of bird flu and the possible emergence of a human viral pandemic.*

What is common to the statements given above? What do they tell us about the world in which we live today?

We live today in an interconnected world. New means of communication such as the internet, and television, and cell phones, have brought a major change in the way in which we understand our world. In the past it might have taken months for news about developments in one part of the world to become known in other parts. But new modes of communication have put us into immediate contact with developments in different parts of the globe. We can watch disasters and wars on our television screens as they are taking place. This has helped to develop sympathies and shared concerns among people in different countries of the world.

Supporters of global citizenship argue that although a world community and global society does not yet exist, people already feel

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linked to each other across national boundaries. They would say that the outpouring of help from all parts of the world for victims of the Asian tsunami and other major calamities is a sign of the emergence of a global society. They feel that we should try to strengthen this feeling and work towards a concept of global citizenship.

The concept of national citizenship assumes that our state can provide us with the protection and rights which we need to live with dignity in the world today. But states today are faced with many problems which they cannot tackle by themselves. In this situation are individual rights, guaranteed by the state, sufficient to protect the freedom of people today? Or has the time come to move to a concept of human rights and global citizenship?

One of the attractions of the notion of global citizenship is that it might make it easier to deal with problems which extend across national boundaries and which therefore need cooperative action by the people and governments of many states. For instance, it might make it easier to find an acceptable solution to the issue of migrants and stateless peoples, or at least to ensure them basic rights and protection regardless of the country in which they may be living.

In the previous section, we saw that equal citizenship within a country can be threatened by the socio-economic inequalities or other problems which might exist. Such problems can ultimately only be solved by the governments and people of that particular society. Therefore, full and equal membership of a state remains important for people today. But the concept of global citizenship reminds us that national citizenship might need to be supplemented by an awareness that we live in an interconnected world and that there is also a need for us to strengthen our links with people in different parts of the world and be ready to work with people and governments across national boundaries.

Let's Do It

Find out about Global Citizenship Education (GCED) from https://en.unesco.org/themes/gced and https://www.gcedclearinghouse.org

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Exercises

1. Citizenship as full and equal membership of a political community involves both rights and obligations. Which rights could citizens expect to enjoy in most democratic state today? What kind of obligation will they have to their state and fellow citizens?

2. All citizens may be granted equal rights but all may not be able to equally exercise them. Explain.

3. Write a short note on any two struggles for full enjoyment of citizen rights which have taken place in India in recent years. Which rights were being claimed in each case?

4. What are some of the problems faced by refugees? In what ways could the concept of global citizenship benefit them?

5. Migration of people to different regions within the country is often resisted by the local inhabitants. What are some of the contributions that the migrants could make to the local economy?

6. "Democratic citizenship is a project rather than an accomplished fact even in countries like India which grant equal citizenship". Discuss some of the issues regarding citizenship being raised in India today.

Exercises
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Chapter 7

Nationalism



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Overview

This chapter will introduce and discuss the ideas of nationalism and nation. Our concern will be not so much to understand why nationalism has arisen, or what functions it serves; rather our concern would be to think carefully about nationalism and assess its claims and aspirations. After studying this chapter you should be able to:

- understand the concepts of nation and nationalism.
- acknowledge the strengths and limitations of nationalism.
- appreciate the need for ensuring a link between democracy and nationalism.

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7.1 Introducing Nationalism

If we were to take a quick poll of what people commonly understand by the term nationalism we are likely to get responses which talk about patriotism, national flags, sacrificing for the country, and the like. The Republic Day parade in Delhi is a striking symbol of Indian nationalism and it brings out the sense of power, strength, as well as diversity which many associate with the Indian nation. But if we try to go deeper we will find that it is difficult to arrive at a precise and widely accepted definition of the term nationalism. This need not mean that we should abandon the effort. Nationalism needs to be studied because it plays such an important role in world affairs.

During the last two centuries or more, nationalism has emerged as one of the most compelling of political creeds which has helped to shape history. It has inspired intense loyalties as well as deep hatreds. It has united people as well as divided them, helped to liberate them from oppressive rule as well as been the cause of conflict and bitterness and wars. It has been a factor in the break up of empires and states. Nationalist struggles have contributed to the drawing and redrawing of the boundaries of states and empires. At present a large part of the world is divided into different nation-states although the process of re-ordering of state boundaries has not come to an end and separatist struggles within existing states are common.

Nationalism has passed through many phases. For instance, in the nineteenth century Europe, it led to the unification of a number of small kingdoms into larger nation-states. The present day German and Italian states were formed through such a process of unification and consolidation. A large number of new states were also founded in Latin America. Along with the consolidation of state boundaries, local dialects and local loyalties were also gradually consolidated into state loyalties and common languages. The people of the new states acquired a new political identity which was based on membership of the nation-state. We have seen a similar process of consolidation taking place in our own country in the last century or more.

But nationalism also accompanied and contributed to the break up of large empires such as the Austro-Hungarian and Russian

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empires in the early twentieth century in Europe as well as the break-up of the British, French, Dutch and Portuguese empires in Asia and Africa. The struggle for freedom from colonial rule by India and other former colonies were nationalist struggles, inspired by the desire to establish nation-states which would be independent of foreign control.

The process of redrawing state boundaries continues to take place. Since 1960, even apparently stable nation-states have been confronted by nationalist demands put forward by groups or regions and these may include demands for separate statehood. Today, in many parts of the world we witness nationalist struggles that threaten to divide existing states. Such separatist movements have developed among the Quebecois in Canada, the Basques in northern Spain, the Kurds in Turkey and Iraq, and the Tamils in Sri Lanka, among others. The language of nationalism is also used by some groups in India. Arab nationalism today may hope to unite Arab countries in a pan Arab union but separatist movements like the Basques or Kurds struggle to divide existing states.

We may all agree that nationalism is a powerful force in the world even today. But it is more difficult to arrive at agreement regarding the definition of terms like nation or nationalism. What is a nation? Why do people form nations and to what do nations aspire? Why are people ready to sacrifice and even die for their nation? Why, and in what way, are claims to nationhood linked to claims to statehood? Do nations have a right to statehood or national self-determination? Or can the claims of nationalism be met without conceding separate statehood? In this chapter we will explore some of these issues.



In this age of globalisation, the world is shrinking. We are living in a global village. Nations are irrelevant.

That's not the case. Nationalism is still relevant. You can see this when Indian team goes out to play cricket. Or when you discover that Indians living abroad still watch Bollywood films.



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7.2 Nations and Nationalism

A nation is not any casual collection of people. At the same time it is also different from other groups or communities found in human society. It is different from the family which is based on face-to-face relationships with each member having direct personal knowledge of the identity and character of others. It is also different from tribes and clans and other kinship groups in which ties of marriage and descent link members to each other so that even if we do not personally know all the members we can, if need be, trace the links that bind them to us. But as a member of a nation we may never come face to face with most of our fellow nationals nor need we share ties of descent with them. Yet nations exist, are lived in and valued by their members.

It is commonly believed that nations are constituted by a group who share certain features such as descent, or language, or religion or ethnicity. But there is in fact no common set of characteristics which is present in all nations. Many nations do not have a common language, Canada is an example here. Canada includes English speaking as well as French speaking peoples. India also has a large number of languages which are spoken in different regions and by different communities. Nor do many nations have a common religion to unite them. The same could be said of other characteristics such as race or descent.

Let's Do It

Identify any patriotic song in your language. How is the nation described in this song? Identify and watch any patriotic films in your language. How has nationalism been portrayed and its complexities worked out in these films?

What then constitutes a nation? A nation is to a great extent an 'imagined' community, held together by the collective beliefs, aspirations and imaginations of its members. It is based on certain assumptions which people make about the collective whole with which they identify. Let us identify and understand some of the assumptions which people make about the nation.

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Shared Beliefs

First, a nation is constituted by belief. Nations are not like mountains, rivers or buildings which we can see and feel. They are not things which exist independent of the beliefs that people have about them. To speak of a people as a nation is not to make a comment about their physical characteristics or behaviour. Rather, it is to refer to the collective identity and vision for the future of a group which aspires to have an independent political existence. To this extent, nations can be compared with a team. When we speak of a team, we mean a set of people who work or play together and, more importantly, conceive of themselves as a collective group. If they did not think of themselves in this way they would cease to be a team and be simply different individuals playing a game or undertaking a task. A nation exists when its members believe that they belong together.



History

Second, people who see themselves as a nation also embody a sense of continuing historical identity. That is, nations perceive themselves as stretching back into the past as well as reaching into the future. They articulate for themselves a sense of their own history by drawing on collective memories, legends, historical records, to outline the continuing identity of the nation. Thus nationalists in India invoked its ancient civilisation and cultural heritage and other achievements to claim that India has had a long and continuing history as a civilisation and that this civilisational continuity and unity is the basis of the Indian nation. Jawaharlal Nehru, for instance, wrote in

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his book *The Discovery of India*, "Though outwardly there was diversity and infinite variety among the people, everywhere there was that tremendous impress of oneness, which held all of us together in ages past, whatever political fate or misfortune had befallen us".

Territory

Third, nations identify with a particular territory. Sharing a common past and living together on a particular territory over a long period of time gives people a sense of their collective identity. It helps them to imagine themselves as one people. It is therefore not surprising that people who see themselves as a nation speak of a homeland. The territory they occupied and the land on which they have lived has a special significance for them, and they claim it as their own. Nations however characterise the homeland in different ways, for instance as motherland, or fatherland, or holy land. The Jewish people for instance, in spite of being dispersed and scattered in different parts of the world always claimed that their original homeland was in Palestine, the 'promised land'. The Indian nation identifies with the rivers, mountains and regions of the Indian subcontinent. However, since more than one set of people may lay claim to the same territory, the aspiration for a homeland has been a major cause of conflict in the world.

Shared Political Ideals

Fourth, while territory and shared historical identity play an important role in creating a sense of oneness, it is a shared vision of the future and the collective aspiration to have an independent political existence that distinguishes groups from nations. Members of a nation share a vision of the kind of state they want to build. They affirm among other things a set of values and principles such as democracy, secularism and liberalism. These ideals represent the terms under which they come together and are willing to live together. It represents, in other words, their political identity as a nation.

In a democracy, it is shared commitment to a set of political values and ideals that is the most desirable basis of a political community or a nation-state. Within it, members of political community are bound by a set of obligations. These obligations

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arise from the recognition of the rights of each other as citizens. A nation is strengthened when its people acknowledge and accept their obligations to their fellow members. We might even say that recognition of this framework of obligations is the strongest test of loyalty to the nation.

Common Political Identity

Many people believe that a shared political vision about the state and society we wish to create is not enough to bind individuals together as a nation. They seek instead a shared cultural identity, such as a common language, or common descent. There is no doubt that speaking the same language makes it easier for us to communicate with each other and sharing the same religion gives us a set of common beliefs and social practices. Observing the same festivals, seeking the same holidays, and holding the same symbols valuable can bring people together, but it can also pose a threat to the values that we cherish in a democracy.

There are two reasons for this. One, all major religions in the world are internally diverse. They have survived and evolved through a dialogue within the community. As a result there exists within each religion a number of sects who differ significantly in their interpretation of the religious texts and norms. If we ignore these differences and forge an identity on the basis of a common religion we are likely to create a highly authoritative and oppressive society.

Two, most societies are culturally diverse. They have people belonging to different religions and languages living together in the same territory. To impose a single religious or linguistic identity as a condition of belonging to a particular state would necessarily exclude some groups. It might restrict the religious liberty of the excluded group or disadvantage those who do not speak the national language. Either way, the ideal that we cherish most in democracy – namely, equal treatment and liberty for all – would be severely limited. For both these reasons it is desirable to imagine the nation in political rather than cultural terms. That is, democracies need to emphasise and expect loyalty to a set of values that may be enshrined in the Constitution of the country rather than adherence to a particular religion, race or language.

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We have identified above some of the ways in which nations express their sense of collective identity. We have also seen why democratic states need to forge this identity on the basis of shared political ideals. But we are still left with an important question, namely, why do people imagine themselves as a nation? What are some of the aspirations of different nations? In the next two sections we shall try to address these questions.

7.3 National Self-determination

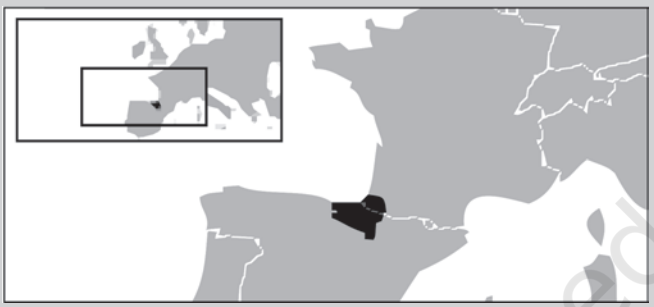
Nations, unlike other social groups, seek the right to govern themselves and determine their future development. They seek, in other words, the right to self-determination. In making this claim a nation seeks recognition and acceptance by the international community of its status as a distinct political entity or state. Most often these claims come from people who have lived together on a given land for a long period of time and who have a sense of common identity. In some cases such claims to self-determination are linked also to the desire to form a state in which the culture of the group is protected if not privileged.

Claims of the latter kind were frequently made in the nineteenth century in Europe. The notion of one culture - one state began to gain acceptability at the time. Subsequently, the idea of one culture-one state was employed while reordering state boundaries after World War I. The Treaty of Versailles established a number of small, newly independent states, but it proved virtually impossible to satisfy all the demands for self determination which were made at the time. Besides, re-organisation of state boundaries to satisfy the demands of one culture - one state, led to mass migration of population across state boundaries. Millions of people as a consequence were displaced from their homes and expelled from the land which had been their home for generations. Many others became victims of communal violence.

Humanity paid a heavy price for re-organising boundaries in a way that culturally distinct communities could form separate nation-states. Besides, even in this effort it was not possible to ensure that the newly created states contained only one ethnic community.

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Demand for National Self-determination in Basque



Demands for national self-determination have been raised in different parts of the World. Let us look at one such case.

Basque is a hilly and prosperous region in Spain. This region is recognised by the Spanish government as an 'autonomous' region within the Spanish federation. But the leaders of Basque Nationalist Movement are not satisfied with this autonomy. They want this region to become a separate country. Supporters of this movement have used constitutional and, till recently, violent means to press for this demand.

Basque Nationalists say that their culture is very different from the Spanish culture. They have their own language that does not resemble Spanish at all. Only one-third of the people in Basque understand that language today. The hilly terrain makes the Basque region geographically distinct from the rest of the Spain. Ever since the Roman days, the Basque region never surrendered its autonomy to the Spanish rulers. Its systems of justice, administration and finance were governed by its own unique arrangements.

The modern Basque Nationalist Movement started when, around the end of nineteenth century, the Spanish rulers tried to abolish this unique political-administrative arrangement. In the twentieth century, the Spanish dictator Franco further cut down this autonomy. He went as far as to ban the use of Basque language in public places and even homes. These repressive measures have now been withdrawn. But the leaders of Basque movement continue to be suspicious of the motives of the Spanish government and fearful of the entry of 'outsiders' in their region. Their opponents say that Basque separatists are trying to make political gains out of an issue already resolved. *Do you think Basque nationalists are justified in demanding a separate nation? Is Basque a nation? What more would you like to know before you can answer this question? Can you think of similar examples from different parts of the world? Can you think of regions and groups in our country where such demands have been made?*

Source: Multiple Resources including www.en.wikipedia.org

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Indeed most states had more than one ethnic and cultural community living within its boundaries. These communities, which were often small in number and constituted a minority within the state were often disadvantaged. Hence, the problem of accommodating minorities as equal citizens remained. The only positive aspect of these developments was that it granted political recognition to various groups who saw themselves as distinct nations and wanted the opportunity to govern themselves and determined their own future.

The right to national self-determination has also been asserted by national liberation movements in Asia and Africa when they were struggling against colonial domination. Nationalist movements maintained that political independence would provide dignity and recognition to the colonised people and also help them to protect the collective interests of their people. Most national liberation movements were inspired by the goal of bringing justice and rights and prosperity to the nation. However, here also, it proved almost impossible to ensure that each cultural group, some of whom claimed to be distinct nations, could achieve political independence and statehood. As a result, migration of populations, border wars, and violence have continued to plague many countries in the region. Thus we have the paradoxical situation of nation-states which themselves had achieved independence through struggle now acting against minorities within their own territories who claim the right to national self- determination.

Virtually every state in the world today faces the dilemma of how to deal with movements for self-determination and this has raised questions about the right to national self-determination. More and more people are beginning to realise that the solution does not lie in creating new states but in making existing states more democratic and equal. That is, in ensuring that people with different cultural and ethnic identities live and co-exist as partners and equal citizens within the country. This may be essential not only for resolving problems arising from new claims for self-determination but also for building a strong and united state. After all, a nation-state which does not respect the rights

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and cultural identity of minorities within the state would find it difficult to gain the loyalty of its members.

7.4 Nationalism and Pluralism

Once we abandon the idea of one-culture-one-state, it becomes necessary to consider ways by which different cultures and communities can survive and flourish within a country. It is in pursuit of this goal that many democratic societies today have introduced measures for recognising and protecting the identity of cultural minority communities living within their territory. The Indian constitution has an elaborate set of provisions for the protection of religious, linguistic and cultural minorities.

The kinds of group rights which have been granted in different countries include constitutional protection for the language, cultures and religion, of minority groups and their members. In some cases identified communities also have the right to representation as a group in legislative bodies and other state institutions. Such rights may be justified on the grounds that they provide equal treatment and protection of the law for members of these groups as well as protection for the cultural identity of the group. Different groups need to be granted recognition as a part of the national community. This means that the national identity has to be defined in an inclusive manner which can recognise the importance and unique contribution of all the cultural communities within the state.

Although it is hoped that granting groups recognition and protection would satisfy their aspirations, some groups may continue to demand separate statehood. This may seem paradoxical when globalisation is also spreading in the world but nationalist aspirations continue to motivate many groups and communities.

Let's Do It

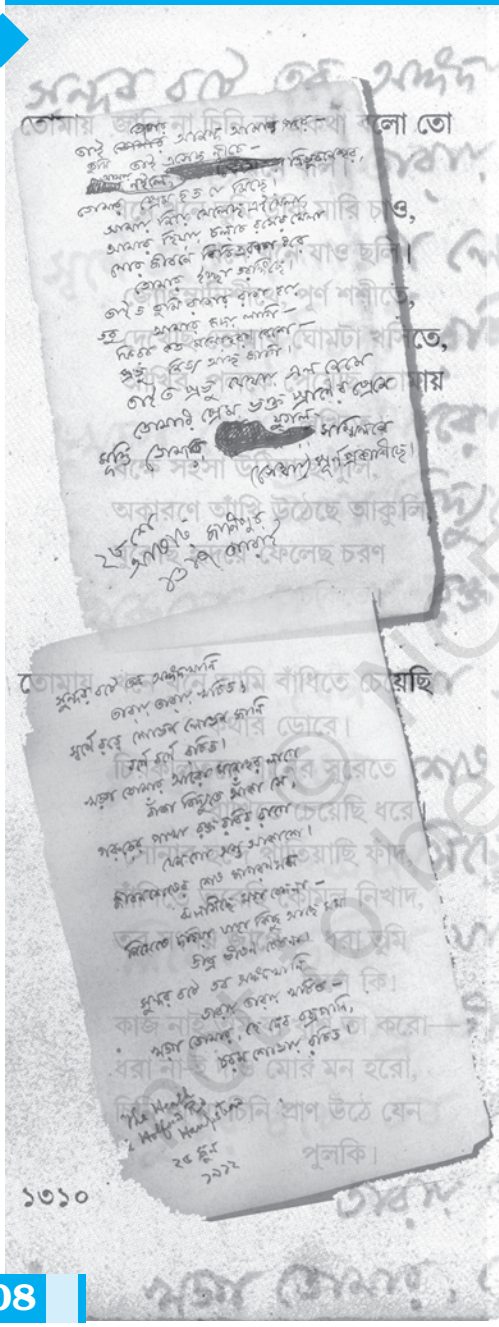
Cut out clippings from various newspapers and magazines related to the demands of various groups in India and abroad for the right to self-determination. Form an opinion about the following:

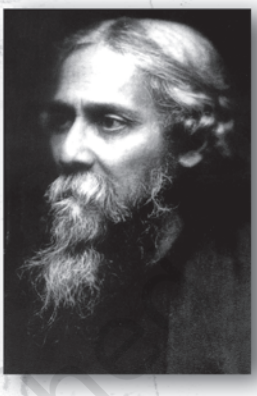
- What are the reasons behind these demands?
- What strategies have they employed?
- Are their claims justified?
- What do you think could be the possible solution?

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Tagore's Critique of Nationalism





"Patriotism cannot be our final spiritual shelter; my refuge is humanity. I will not buy glass for the price of diamonds, and I will never allow patriotism to triumph over humanity as long as I live."

This was said by Rabindranath Tagore. He was against colonial rule and asserted India's right to independence. He felt that in the British administration of the colonies, there was no place for 'upholding of dignity of human relationships,' an idea which was otherwise cherished in the British civilisation. Tagore made a distinction between opposing western imperialism and rejecting western civilisation. While Indians should be rooted in their own culture and heritage, they should not resist learning freely and profitably from abroad.

A critique of what he called 'patriotism' is a persistent theme in his writings. He was very critical of the narrow expressions of nationalism that he found at work in parts of our independence movement. In particular, he was afraid that a rejection of the west in favour of what looked like Indian traditions was not only limiting in itself; it could easily turn into hostility to other influences from abroad, including Christianity, Judaism, Zoroastrianism and Islam which have been present in our country.

Considerable generosity and skill is needed for countries to be able to deal with such demands in a democratic manner.

To sum up, the right to national self-determination was often understood to include the right to independent statehood for nationalities. But not only would it be impossible to grant independent statehood to every group that sees itself as a distinct cultural group, or nation, it would probably also be undesirable. It might lead to the formation of a number of states too small to be economically and politically viable and it could multiply the problems of minorities. The right has now been reinterpreted to mean granting certain democratic rights for a nationality within a state.

The world we live in is one that is deeply conscious of the importance of giving recognition to identities. Today we witness many struggles for the recognition of group identities, many of which employ the language of nationalism. While we need to acknowledge the claims of identity, we should be careful not to allow identity claims to lead to divisions and violence in the society. We need to remember that each person has many identities. For instance, a person may have identities based on gender, caste, religion, language, or region, and may be proud of all of them. So long as each person feels that he/she can freely express the different dimensions of his/her personality, they may not feel the need to make claims on the state for political recognition and concessions for any one identity. In a democracy the political identity of citizen should encompass the different identities which people may have. It would be dangerous if intolerant and homogenising forms of identity and nationalism are allowed to develop.

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1. How is a nation different from other forms of collective belonging?

2. What do you understand by the right to national self-determination? How has this idea resulted in both formation of and challenges to nation-states?

3. "We have seen that nationalism can unite people as well as divide them, liberate them as well as generate bitterness and conflict". Illustrate your answer with examples.

4. Neither descent, nor language, nor religion or ethnicity can claim to be a common factor in nationalisms all over the world. Comment.

5. Illustrate with suitable examples the factors that lead to the emergence of nationalist feelings.

6. How is a democracy more effective than authoritarian governments in dealing with conflicting nationalist aspirations?

7. What do you think are the limitations of nationalism?

Exercises
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Chapter 8

Secularism

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Overview

When different cultures and communities exist within the same country, how should a democratic state ensure equality for each of them? This is the question that emerged in the previous chapter. In this chapter we will try and see how the concept of secularism may be applied to answer that concern. In India, the idea of secularism is ever present in public debates and discussions, yet there is something very perplexing about the state of secularism in India. On the one hand, almost every politician swears by it. Every political party professes to be secular. On the other hand, all kinds of anxieties and doubts beset secularism in India. Secularism is challenged not only by clerics and religious nationalists but by some politicians, social activists and even academics.

In this chapter we will engage in this ongoing debate by asking the following questions:

- What is the meaning of secularism?
- Is secularism a western implant on Indian soil?
- Is it suitable for societies where religion continues to exercise a strong influence on individual lives?
- Does secularism show partiality? Does it 'pamper' minorities?
- Is secularism anti-religious?

At the end of this chapter you should be able to understand and appreciate the importance of secularism in a democratic society like India, and learn something about the distinctiveness of Indian secularism.

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8.1 What is Secularism?

Though Jews faced discrimination for centuries throughout Europe, in the present state of Israel, Arab minorities, both Christian and Muslims, are excluded from social, political and economic benefits available to Jewish citizens. Subtle forms of discrimination also continue to persist against non-Christians in several parts of Europe. The condition of religious minorities in the neighbouring states of Pakistan and Bangladesh has also generated considerable concern. Such examples remind us of the continuing importance of secularism for people and societies in today's world.

Inter-religious Domination

In our own country, the Constitution declares that every Indian citizen has a right to live with freedom and dignity in any part of the country. Yet in reality, many forms of exclusion and discrimination continue to persist. Consider three most stark examples:

- More than 2,700 Sikhs were massacred in Delhi and many other parts of the country in 1984. The families of the victims feel that the guilty were not punished.
- Several thousands of Hindu Kashmiri pandits have been forced to leave their homes in the Kashmir valley; they have not been able to return to their homes for more than two decades.
- More than 1,000 persons were killed during the post-Godhra riots in Gujarat in 2002. The surviving members of many of these families could not go back to the villages in which they lived.

What do these examples have in common? They all have to do with discrimination in one form or the other. In each case members of one community are targeted and victimised on account of their religious identity. In other words, basic freedoms of a set of citizens are denied. Some might even say that these incidents are instances of religious persecution and they reflect inter-religious domination.

Secularism is first and foremost a doctrine that opposes all such forms of inter-religious domination. This is however only one crucial aspect of the concept of secularism. An equally important dimension

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of secularism is its opposition to intra-religious domination. Let us get deeper into this issue.

Intra-religious Domination

Some people believe that religion is merely the 'opium of the masses' and that, one day, when the basic needs of all are fulfilled and they lead a happy and contented life, religion will disappear. Such a view comes from an exaggerated sense of human potential. It is unlikely that human beings will ever be able to *fully* know the world and control it. We may be able to prolong our life but will never become immortal. Disease can never be entirely eliminated, nor can we get rid of an element of accident and luck from our lives. Separation and loss are endemic to the human condition. While a large part of our suffering is man-made and hence eliminable, at least some of our suffering is not made by man. Religion, art and philosophy are responses to such sufferings. Secularism too accepts this and therefore it is not anti-religious.

However, religion has its share of some deep-rooted problems. For example, one can hardly think of a religion that treats its male and female members on an equal footing. In religions such as Hinduism, some sections have faced persistent discrimination. For example *dalits* have been barred from entering Hindu temples. In some parts of the country, Hindu woman cannot enter temples. When religion is organised, it is frequently taken over by its most conservative faction, which does not tolerate any dissent. Religious fundamentalism in parts of the US has become a big problem and endangers peace both within the country and outside. Many religions fragment into sects which leads to frequent sectarian violence and persecution of dissenting minorities.

Thus religious domination cannot be identified only with inter-religious domination. It takes another conspicuous form, namely, *intra-religious* domination. As secularism is opposed to all forms of institutionalised religious domination, it challenges not merely inter-religious but also intra-religious domination.

We now possess a general idea of secularism. It is a normative doctrine which seeks to realise a secular society, i.e., one devoid of

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either inter-religious or intra-religious domination. Put positively, it promotes freedom within religions, and equality between, as well as within, religions. Within this larger framework, let us now consider a narrower and more specific question, namely: What kind of state is necessary to realise these goals? In other words, let us consider how a state committed to the ideal of secularism should relate to religion and religious communities.

8.2 Secular State

Perhaps one way of preventing religious discrimination is to work together for mutual enlightenment. Education is one way of helping to change the mindset of people. Individual examples of sharing and mutual help can also contribute towards reducing prejudice and suspicion between communities. It is always inspiring to read stories of Hindus saving Muslims or Muslims saving Hindus in the midst of a deadly communal riot. But it is unlikely that mere education or the goodness of some persons will eliminate religious discrimination. In modern societies, states have enormous public power. How they function is bound to make a crucial difference to the outcome of any struggle to create a society less ridden with inter-community conflict and religious discrimination. For this reason, we need to see what kind of state is needed to prevent religious conflict and to promote religious harmony.

Let's Do It

List some of the ways in which you feel communal harmony could be promoted.

How should a state prevent domination by any religious group? For a start, a state must not be run by the heads of any particular religion. A state governed directly by a priestly order is called theocratic. Theocratic states, such as the Papal states of Europe in medieval times or in recent times the Taliban-controlled state, lacking separation between religious and political institutions, are known for their hierarchies, and oppressions, and reluctance to allow freedom of religion to members of other religious groups. If we value peace, freedom and equality, religious institutions and state institutions must be separated.

Some people think that the separation of state and religion is sufficient for the existence of a secular state. This does not appear

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to be so. Many states which are non-theocratic continue to have a close alliance with a particular religion. For example, the state in England in the sixteenth century was not run by a priestly class but clearly favoured the Anglican Church and its members. England had an established Anglican religion, which was the official religion of the state. Today Pakistan has an official state religion, namely Sunni Islam. Such regimes may leave little scope for internal dissent or religious equality.

To be truly secular, a state must not only refuse to be theocratic but also have no formal, legal alliance with any religion. The separation of religion-state is, however, a necessary but not a sufficient ingredient of a secular state. A secular state must be committed to principles and goals which are at least partly derived from non-religious sources. These ends should include peace, religious freedom, freedom from religiously grounded oppression, discrimination and exclusion, as also inter-religious and intra-religious equality.

To promote these ends the state must be separated from organised religion and its institutions for the sake of some of these values. However, there is no reason to suggest that this separation should take a particular form. In fact the nature and extent of separation may take different forms, depending upon the specific values it is meant to promote and the way in which these values are spelt out. We will now consider two such conceptions: the mainstream western conception best represented by the American state, and an alternative conception best exemplified by the Indian state.

Let's Debate

Learning more about other religions is the first step towards learning to respect and accept other people and their beliefs. But that need not mean that we should not be able to stand up for what we feel are basic human values.

8.3 The Western Model of Secularism

All secular states have one thing in common: they are neither theocratic nor do they establish a religion. However, in most commonly prevalent conceptions, inspired mainly by the American model, separation of religion and state is understood as mutual exclusion: the state will not intervene in the affairs of religion and, in the same manner, religion will not interfere in the affairs of the state. Each

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Kemal Ataturk's Secularism

Let us look at a very different kind of secularism practised in Turkey in the first half of the twentieth century. This secularism was not about principled distance from organised religion, instead it involved, active intervention in and suppression of, religion. This version of secularism was propounded and practised by Mustafa Kemal Ataturk.

He came to power after the First World War. He was determined to put an end to the institution of *Khalifa* in the public life of Turkey. Ataturk was convinced that only a clear break with traditional thinking and expressions could elevate Turkey from the sorry state it was in. He set out in an aggressive manner to modernise and secularise Turkey. Ataturk changed his own name from Mustafa Kemal Pasha to Kemal Ataturk (Ataturk translates as Father of the Turks). The *Fez*, a traditional cap worn by Muslims, was banned by the Hat Law. Western clothing was encouraged for men and women. The Western (Gregorian) calendar replaced the traditional Turkish calendar. In 1928, the new Turkish alphabet (in a modified Latin form) was adopted.

Can you imagine a secularism that does not give you the freedom to keep the name you are identified with, wear the dress you are used to, change the language you communicate in? In what ways do you think Ataturk's secularism is different from Indian secularism ?

has a separate sphere of its own with independent jurisdiction. No policy of the state can have an exclusively religious rationale. No religious classification can be the basis of any public policy. If this happened there is illegitimate intrusion of religion in the state.

Similarly, the state cannot aid any religious institution. It cannot give financial support to educational institutions run by religious communities. Nor can it hinder the activities of religious communities, as long as they are within the broad limits set by the law of the land. For example, if a religious institution forbids a woman from becoming a priest, then the state can do little about it. If a religious community excommunicates its dissenters, the state can only be a silent witness. If a particular religion forbids the entry of some of its members in the sanctum of its temple, then the state has no option but to let the matter rest exactly where it is. On this view, religion is a private matter, not a matter of state policy or law.

This common conception interprets freedom and equality in an individualist manner. Liberty is the liberty of individuals. Equality

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is equality between individuals. There is no scope for the idea that a community has the liberty to follow practices of its own choosing. There is little scope for community-based rights or minority rights. The history of western societies tells us why this is so. Except for the presence of the Jews, most western societies were marked by a great deal of religious homogeneity. Given this fact, they naturally focused on intra-religious domination. While strict separation of the state from the church is emphasised to realise among other things, individual freedom, issues of inter-religious (and therefore of minority rights) equality are often neglected.

Finally, this form of mainstream secularism has no place for the idea of state-supported religious reform. This feature follows directly from its understanding that the separation of state from church/religion entails a relationship of mutual exclusion.

8.4 The Indian Model of Secularism

Sometimes it is said that Indian secularism is an imitation of western secularism. But a careful reading of our Constitution shows that this is not the case. Indian secularism is fundamentally different from Western secularism.

Nehru on secularism'

'Equal protection by the State to all religions'. This is how Nehru responded when a student asked him to spell out what secularism meant in independent India. He wanted a secular state to be one that "protects all religions, but does not favour one at the expense of others and does not itself adopt any religion as the state religion". Nehru was the philosopher of Indian secularism.

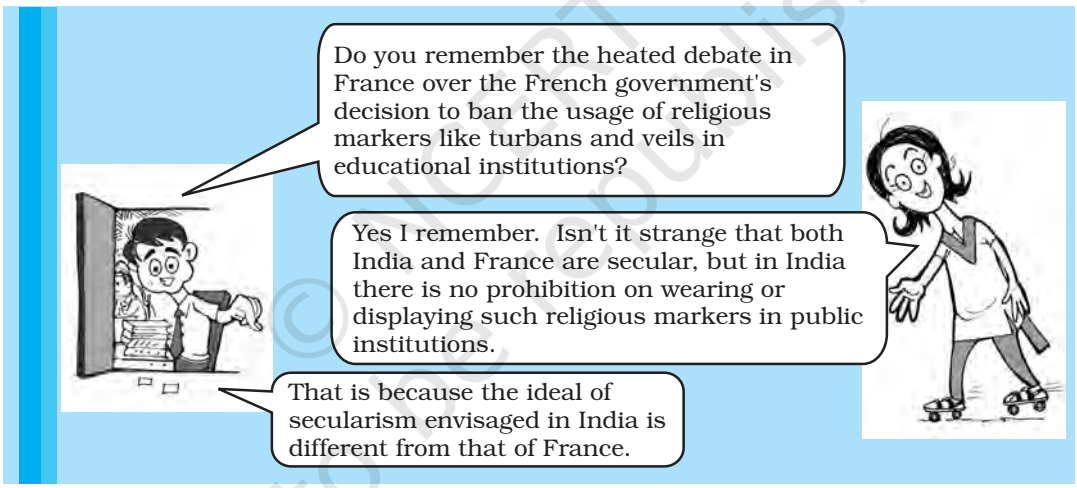
Nehru did not practise any religion, nor did he believe in God. But for him secularism did not mean hostility to religion. In that sense Nehru was very different from Ataturk in Turkey. At the same time Nehru was not in favour of a complete separation between religion and state. A secular state can interfere in matters of religion to bring about social reform. Nehru himself played a key role in enacting laws abolishing caste discrimination, dowry and *sati*, and extending legal rights and social freedom to Indian women.

While Nehru was prepared to be flexible on many counts, there was one thing on which he was always firm and uncompromising. Secularism for him meant a complete opposition to communalism of all kinds. Nehru was particularly severe in his criticism of communalism of the majority community. Secularism for him was not only a matter of principles, it was also the only guarantee of the unity and integrity of India.

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Indian secularism does not focus only on church-state separation and the idea of inter-religious equality is crucial to the Indian conception. Let us elaborate this further.

What makes Indian secularism distinctive? For a start it arose in the context of deep religious diversity that predated the advent of Western modern ideas and nationalism. There was already a culture of inter-religious 'tolerance' in India. However, we must not forget that tolerance is compatible with religious domination. It may allow some space to everyone but such freedom is usually limited. Besides, tolerance allows you to put up with people whom you find deeply repugnant. This is a great virtue if a society is recovering from a major civil war but not in times of peace where people are struggling for equal dignity and respect.



The advent of western modernity brought to the fore hitherto neglected and marginalised notions of equality in Indian thought. It sharpened these ideas and helped us to focus on equality within the community. It also ushered ideas of inter-community equality to replace the notion of hierarchy. Thus Indian secularism took on a distinct form as a result of an interaction between what already existed in a society that had religious diversity and the ideas that came from the west. It resulted in equal focus on intra-religious and inter-religious domination. Indian secularism equally opposed the

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oppression of *dalits* and women within Hinduism, the discrimination against women within Indian Islam or Christianity, and the possible threats that a majority community might pose to the rights of the minority religious communities. This is its first important difference from mainstream western secularism.

Connected to it is the second difference. Indian secularism deals not only with religious freedom of *individuals* but also with religious freedom of minority *communities*. Within it, an individual has the right to profess the religion of his or her choice. Likewise, religious minorities also have a right to exist and to maintain their own culture and educational institutions.

LET'S DEBATE

Religious identities and differences have no significance for the young.

A third difference is this. Since a secular state must be concerned equally with intra-religious domination, Indian secularism has made room for and is compatible with the idea of state-supported religious reform. Thus, the Indian constitution bans untouchability. The Indian state has enacted several laws abolishing child marriage and lifting the taboo on inter-caste marriage sanctioned by Hinduism.

The question however that arises is: can a state initiate or even support religious reforms and yet be secular? Can a state claim to be secular and not maintain separation of religion from state? The secular character of the Indian state is established by virtue of the fact that it is neither theocratic nor has it established any one or multiple religions. Beyond that it has adopted a very sophisticated policy in pursuit of religious equality. This allows it either to disengage with religion in American style, or engage with it if required.

The Indian state may engage with religion negatively to oppose religious tyranny. This is reflected in such actions as the ban on untouchability. It may also choose a positive mode of engagement. Thus, the Indian Constitution grants all religious minorities the right to establish and maintain their own educational institutions which may receive assistance from the state. All these complex strategies can be adopted by the state to promote the values of peace, freedom and equality.

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Let's Think

Is secularism compatible with the following?

- Subsidising a pilgrimage for a minority community.
- Performing religious rituals in government offices.

Let's Do It

- Watch films such as *Bombay* and *Garam Hawa*? What ideals of secularism do they depict?
- Read a short story 'Name' in *Forsaking Paradise: Stories from Ladakh* by Abdul Ghani Sheikh [Published by Katha]

It should be clear by now why the complexity of Indian secularism cannot be captured by the phrase *"equal respect for all religions"*. If by this phrase is meant peaceful coexistence of all religions or inter-religious toleration, then this will not be enough because secularism is much more than mere peaceful coexistence or toleration. If this phrase means equal feeling of respect towards all established religions and their practices, then there is an ambiguity that needs clearing. Indian secularism allows for principled state intervention in all religions. Such intervention betrays disrespect to some aspects of every religion. For example, religiously sanctioned caste-hierarchies are not acceptable within Indian secularism. The secular state does not have to treat every aspect of every religion with equal respect. It allows equal disrespect for some aspects of organised religions.

8.5 Criticisms of Indian Secularism

Indian secularism has been subjected to fierce criticism. What are these criticisms? Can we defend secularism from them?

Anti-religious

First, it is often argued that secularism is anti-religious. We hope to have shown that secularism is against institutionalised religious domination. This is not the same as being anti-religious.

Similarly, it has been argued by some that secularism threatens religious identity. However, as we noted earlier, secularism promotes religious freedom and equality. Hence, it clearly protects religious identity rather than threatens it. Of course, it does undermine

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some forms of religious identity: those, which are dogmatic, violent, fanatical, exclusivist and those, which foster hatred of other religions. The real question is not whether something is undermined but whether what is undermined is intrinsically worthy or unworthy.

Western Import

A second criticism is that secularism is a Western concept and, therefore, unsuited to Indian conditions. On the surface, this is a strange complaint. For there are millions of things in India today, from trousers to the internet and parliamentary democracy, that have their origins in the west. One response, therefore, could be: so what? Have you heard a European complain that because zero was invented in India, they will not work with it?

However, this is a somewhat shallow response. The more important and relevant point is that for a state to be truly secular, it must have ends of its own. Western states became secular when, at an important level, they challenged the control of established religious authority over social and political life. The western model of secularism is not, therefore, a product of the Christian world. What of the claim that it is western? The mutual exclusion of religion and state, which is supposed to be the ideal of western secular societies, is also not the defining feature of all secular states. The idea of separation can be interpreted differently by different societies. A secular state may keep a principled distance from religion to promote peace between communities and it may also intervene to protect the rights of specific communities.

This exactly is what has happened in India. India evolved a variant of secularism that is not just an implant from the west on Indian soil. The fact is that the secularism has both western and non-western origins. In the west, it was the Church-state separation which was central and in countries such as India, the idea of peaceful coexistence of different religious communities has been important.

Minoritism

A third accusation against secularism is the charge of minoritism. It is true that Indian secularism advocates minority rights so the question is: Is this justified? Consider four adults in a compartment

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of a train travelling at the fastest speed imaginable. In the middle of the journey, one of the four passengers expresses a desire to smoke. The second one complains that he cannot bear cigarette smoke. The other two passengers smoke too but say nothing. Clearly there is a conflict here between two passengers. A suggestion is made that it be resolved by vote. The two mild smokers go along with the addict and the non-smoker is defeated by a margin of two votes. The person in the minority loses but the result appears fair because a proper democratic procedure adopted by common agreement was followed.

Now alter the situation a bit. Suppose that the non-smoker suffers from asthma. Smoking can induce a life-threatening attack in him. His preference that the other person does not smoke expresses now his fundamental and very urgent interest. Would the procedure previously followed, of going with the decision of the majority, be fair in such a context? Do you not think that the addicted smoker should refrain till the train reaches its destination? You will agree that when it comes to fundamental interests, voting as a democratic procedure is inappropriate. A person has a prior right to the satisfaction of his or her significant interests. What holds true of individuals also holds for communities. The most fundamental interest of minorities must not be harmed and must be protected by constitutional law. This is exactly how it is in the Indian Constitution. Minority rights are justified as long as these rights protect their fundamental interests.



I thought treating everyone in exactly the same way is not always fair!

At this point someone might still say that minority rights are special privileges which come with some costs to others. Why then should such special privilege be given? This question can be best answered by another example. Consider that a film is being shown in an auditorium on the first floor. The auditorium is accessible by a staircase. Everyone is free to buy a ticket, go up the stairs and see the film. Or, are they? Is everyone really free? Suppose that among avid film-goers are some old people, some who have recently broken a leg and others who have long been physically challenged. None of them can really climb up the stairs. Do you

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think it would be wrong if a lift or a ramp was provided for people in wheel chairs? Doing so enables them to achieve exactly what others routinely procure through the staircase. Yet, this group in minority needs a different mode of getting to the first floor. If all spaces are structured in such a way that they suit only young, able-bodied persons, then some category of persons will forever be excluded from a simple benefit such as watching a film. To make a separate arrangement for them is not to accord them any special treatment. It is to treat them with the same respect and dignity with which all others are being treated. The lesson is that minority rights need not be nor should be viewed as special privileges.

Interventionist

A *fourth* criticism claims that secularism is coercive and that it interferes excessively with the religious freedom of communities. This misreads Indian secularism. It is true that by rejecting the idea of separation as mutual exclusion, Indian secularism rejects non-interference in religion. But it does not follow that it is excessively interventionist. Indian secularism follows the concept of principled distance which also allows for non-interference. Besides, interference need not automatically mean coercive intervention.



How can a State treat all religions equally? Would granting equal number of holidays to each religion help? Or would banning any religious ceremony on public occasions be a way of doing this?

It is of course true that Indian secularism permits state-supported religious reform. But this should not be equated with a change imposed from above, with coercive intervention. But it might be argued: does it do this consistently? Why have personal laws of all religious communities not been reformed? This is the big dilemma facing the Indian state. A secularist might see the personal laws (laws concerning marriage, inheritance and other family matters which are governed by different religions) as manifestations of community-specific rights that are protected by the Constitution. Or he might see these laws as an affront to the basic principles of secularism on the ground that they treat women unequally and therefore unjustly. Personal laws can be seen as manifestations of freedom

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from inter-religious domination or as instances of intra-religious domination.

Such internal conflicts are part and parcel of any complex doctrine but they are not something that we need to live with forever. Personal laws can be reformed in such a way that they continue to exemplify both minority rights and equality between men and women. But such reform should neither be brought about by State or group coercion nor should the state adopt a policy of total distance from it. The state must act as a facilitator by supporting liberal and democratic voices within every religion.

Vote Bank Politics

Fifth, there is the argument that secularism encourages the politics of vote banks. As an empirical claim, this is not entirely false. However, we need to put this issue in perspective. First, in a democracy politicians are bound to seek votes. That is part of their job and that is what democratic politics is largely about. To blame a politician for pursuing a group of people or promising to initiate a policy with the motivation to secure their votes is unfair. The real question is what precisely the vote is sought for. Is it to promote solely his self-interest or power or is it also for the welfare of the group in question? If the group which voted for the politician does not get any benefit from this act, then surely the politician must be blamed. If secular politicians who sought the votes of minorities also manage to give them what they want, then this is a success of the secular project which aims, after all, to also protect the interests of the minorities.

But what if the welfare of the group in question is sought at the cost of the welfare and rights of other groups? What if the interests of the majority are undermined by these secular politicians? Then a new injustice is born. Can you think of such examples? In theory, there may not be anything wrong with vote bank politics but only when vote bank politics leads to the mobilisation of a social group to vote en masse for a particular candidate or political party during elections, this distorts electoral politics. Here, the important feature is that the whole group works as a single monolithic unit during voting. Despite the diversity within the unit, the party or leader pursuing such vote bank politics tries to artificially construct a belief that the interest of the

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group is one. In effect, by doing this, the political parties' priorities short- term electoral gains over the long- term development and governance needs of society. In India it has been observed that political parties neglecting substantive issues have often focused on emotive issues for electoral gains, neglecting genuine problems faced by the community. Competitive vote bank politics has the potential to exacerbate social division by portraying different groups as rivals vying for limited resources. In India, the vote bank politics is also associated with minority appeasement. This means that the political parties disregard the principles of equality of all citizens and give priority to the interests of a minority group. Ironically, this has led to further alienation and marginalization of the minority group. As vote bank politics fails to acknowledge diversity within the minority group taking up issues of social reform within these groups has also proved difficult.

Impossible Project

A final, cynical criticism might be this: Secularism cannot work because it tries to do too much, to find a solution to an intractable problem. What is this problem? People with deep religious differences will never live together in peace. Now, this is an empirically false claim. The history of Indian civilisation shows that this kind of living together is realisable. It was realised elsewhere too. The Ottoman Empire is a stirring example. But now critics might say that co-existence under conditions of inequality was indeed possible. Everyone could find a place in a hierarchically arranged order. The point, they claim, is that this will not work today when equality is increasingly becoming a dominant cultural value.

There is another way of responding to this criticism. Far from pursuing an impossible objective Indian secularism mirrors the future of the world. A great experiment is being carried out in India watched with razor-sharp eyes and with great interest by the whole world. It is doing so because with the migration of people from the former colonies to the west, and the increased movement of people across the globe with the intensification of globalisation, Europe and America and some parts of the Middle-East are beginning to resemble India in the diversity of cultures and religions which are present in their societies. These societies are watching the future of the Indian experiment with keen interest.

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Read out the list of gazetted holidays in India. Does it uphold the case of Secularism in India? Give your arguments.

Name of the holiday	Date according to Gregorian Calendar (for 2019)
Republic Day	January 26
Maha Shivaratri	March 4
Holi	March 21
Mahavir Jayanti	April 17
Good Friday	April 19
Buddha Purnima	May 18
Id-ul-Fitr	June 5
Id-ul-Zuha (Bakrid)	August 12
Independence Day	August 15
Janmashtami	August 24
Muharram	September 10
Mahatma Gandhi's Birthday	October 2
Dussehra	October 8
Diwali (Deepavali)	October 27
Milad-un-Nabi/Id-e-Milad (Birthday of Prophet Mohammad)	November 10
Guru Nanak's Birthday	November 12
Christmas Day	December 25

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Exercises

1. Which of the following do you feel are compatible with the idea of secularism? Give reasons.
   (a) Absence of domination of one religious group by another.
   (b) Recognition of a state religion.
   (c) Equal state support to all religions.
   (d) Mandatory prayers in schools.
   (e) Allowing separate educational institutions for any minority community.
   (f) Appointment of temple management bodies by the government.
   (g) Intervention of state to ensure entry of *Dalits* in temples.

2. Some of the key characteristics of western and Indian model of secularism have got mixed up. Separate them and make a new table.

Western Secularism	**Indian Secularism**
Strict non-interference of religion and state in each other's affairs	State supported religious reforms allowed
Equality between different religious groups is a key concern	Equality between different sects of a religion is emphasised
Attention to minority rights	Less attention to community based rights
Individual and his rights at the centre	Rights of both individual and religious community protected.

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Exercises

3. What do you understand by secularism? Can it be equated with religious tolerance?

4. Do you agree with the following statements? Give reasons for supporting or opposing any of them.
   (a) Secularism does not allow us to have a religious identity.
   (b) Secularism is against inequality within a religious group or between different religious groups.
   (c) Secularism has a western-Christian origin. It is not suitable for India.

5. Indian secularism focuses on more than the religion-state separation. Explain.

6. Explain the concept of principled distance.

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